

NEW OR TRANSFER LIQUOR LICENSE OR PERMIT APPLICATION

FOR LIQUOR DIVISION USE ONLY		
Customer #		
Trf from		
Reviewer	Initials	Date
Agent:		
Mgr:		

To be completed by City / Town / County Clerk		Local License #:																											
License Fees	Annual Fee: \$ <u>10,500.00</u>	Date filed with clerk: <u>3 / 13 / 2025</u>																											
	Prorated Fee: \$ _____	Advertising Dates: (2 Consecutive Weeks Prior to Hearing) <u>4-3-2025 & 4-10-2025</u>																											
	Transfer Fee: \$ _____	Public Hearing Date: <u>4 / 14 / 2025</u>																											
	Publishing Fee: \$ <u>100.00</u>																												
Publishing Fee Direct Billed to Applicant: ☐																													
License Term:	<u>open / unlimited</u> Through <u>3 / 31 / 2026</u>																												
LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.																													
Applicant (Business Name): <u>Frontier Daze, LLC</u>																													
Doing Business As (DBA) / Trade Name: <u>Cheba Hut</u>																													
Building to be licensed / Building Address: <u>3838 Atkin St.</u>																													
(Address Number, and Suite or Unit Number, and Street or Road Name)																													
<u>Cheyenne, WY 82001 Laramie</u>																													
City State Zip County																													
Local Mailing Address: <u>3838 Atkin St. 406 N. College Ave</u>																													
(Address Number or PO Box, and Suite or Unit Number, and Street or Road Name)																													
<u>Cheyenne WY 82001 Laramie</u>																													
City State Zip County																													
Local Business Telephone Number: <u>TBD</u> Fax Number: <u>8004</u>																													
Business E-Mail Address: <u>brandy.king@chebahut.com</u> , <u>rocky.gupta@chebahut.com</u>																													
Business Primary Contact: <u>Brandy King</u>																													
First Name Last Name																													
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ALL APPLICANTS MUST COMPLETE QUESTIONS 1-3**1. BUILDING OWNERSHIP: W.S. 12-4-103(a)(iii)**

Does the Applicant own or lease the licensed building?

- (a) The Applicant **OWNS** the licensed building.
 (b) The Applicant **LEASES** the licensed building.

☐ YES (own)
☒ YES (lease)

If the building is leased, please submit a copy of the lease and indicate:

- (i) Lease term expiration date; located on page 33 paragraph 1 2/2030

Note: The lease term **MUST** continue at least through the term of the liquor license or permit

- (ii) **Sales** provision for alcoholic or malt beverages; located, on page 6 paragraph 2.4

Note: The lease **MUST** contain a provision for **SALE OF ALCOHOLIC or MALT BEVERAGES**.**2. LIQUOR BUSINESS CONTROL: W.S. 12-4-601(b)**

- (a) To operate the liquor business, has the business or license/permit been assigned, leased, transferred or contracted with any other person (entity) to operate and assert total or partial control of the license or permit or the licensed building?

☐ YES ☒ NO

- (b) If the answer was **YES** to 2(a) above, explain fully and submit any documents in connection there within.

3. INTEREST IN LICENSE OR PERMIT: W.S. 12-5-401, 12-5-402, 12-5-403 -

Does any alcohol manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm:

- (a) Hold any interest in the license/permit applied for? ☐ YES ☒ NO
 (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in the business? ☐ YES ☒ NO
 (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
 (d) If the answer was **YES** to any of the above, explain fully and submit any documents in connection there within.

4. RETAIL LIQUOR LICENSE-COUNTY LOCATIONS ONLY: W.S. 12-4-201(f)(ii)

Is the licensed building within five (5) miles of an incorporated town or city?

☐ YES ☐ NO

5. RETAIL LIQUOR LICENSE-COMMERCIAL SERVICE AIRPORTS ONLY: W.S. 12-4-201(m)

- (a) Will food and beverage services be contracted or subcontracted? ☐ YES ☐ NO
 1. If **YES**, is a copy of the food and beverage contract or lease attached? ☐ YES ☐ NO

6. BAR AND GRILL LICENSE OR RESTAURANT LIQUOR LICENSE ONLY: 12-4-413(a) / W.S. 12-4-407(a)

Is a copy of the valid food service permit or the approved permit application attached?

☒ YES ☐ NO

7. RESORT LIQUOR LICENSE: W.S. 12-4-401 through W.S. 12-4-403(b)

Does the resort complex:

- (a) Have an actual valuation of at least one million dollars, or have committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO
 (b) Include a restaurant and a convention facility; a convention facility that will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
 (c) Include motel, hotel or privately owned condominium, town house or home accommodations approved for short term occupancy with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO
 (d) If no on question (c), have a ski resort facility open to the general public in which has been committed or expended not less than 10 million dollars (\$10,000,000.00)? W.S. 12-4-401(b)(iv) ☐ YES ☐ NO
 (e) Will food and beverage services be contracted or subcontracted? W.S. 12-4-403(b) ☐ YES ☐ NO
 1. If **YES** to (e), is a copy of the food and beverage contract or lease attached? ☐ YES ☐ NO

8. MICROBREWERY PERMIT ONLY: WHOLESALE DISTRIBUTION: W.S. 12-2-201(a)

- (a) Will the microbrewery self-distribute its products or distribute through a licensed wholesaler? ☐ YES ☐ NO

If **YES**, a wholesale malt beverage license from the Liquor Division will be required.

9. LIMITED RETAIL (CLUB) LIQUOR LICENSE:**FRATERNAL CLUBS W.S. 12-1-101(a)(iii)(B)**

- (a) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
- (b) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

10. LIMITED RETAIL (CLUB) LIQUOR LICENSE:**VETERANS CLUBS W.S. 12-1-101(a)(iii)(A):**

- (a) Does the Veteran's organization hold a charter by the Congress of the United States? ☐ YES ☐ NO
- (b) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

11. LIMITED RETAIL (CLUB) LIQUOR LICENSE:**GOLF CLUBS W.S. 12-1-101(a)(iii)(D) / W.S. 12-4-301(e):**

- (a) Does the golf club have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Does the Applicant, maintain, or operate a bona fide golf course together with a clubhouse? ☐ YES ☐ NO
- (c) Is the Applicant a Political Subdivision of the state that owns, maintains, or operates this golf course? ☐ YES ☐ NO
1. Will food and beverage services be contracted or subcontracted? W.S. 12-4-301(e) ☐ YES ☐ NO
2. If YES, is a copy of the food and beverage contract or lease attached? ☐ YES ☐ NO

12. LIMITED RETAIL (CLUB) LIQUOR LICENSE:**SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E) / W.S. 12-4-301(b):**

- (a) Does the club have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax-exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Is a true copy of the club bylaws attached to this application? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License? (Petition(s) Attached) ☐ YES ☐ NO

**13. Applicant is Filing As Individual, Partnership, Political Subdivision, Organization or Other:
W.S. 12-4-102(a)(ii) & (iii)**

Each individual, partner or officer (as applicable) must complete all of the information below.
(If more information is required, list on a separate piece of paper and attach to this application.)

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip DO NOT LIST PO BOXES	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been convicted within the previous 10 years of:	
					a Felony Violation Relating to Alcoholic Liquor or Malt Beverages?	any Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

14. Applicant is Filing As a Corporation, Limited Company, Limited Liability Company, Limited Liability Partnership or Limited Partnership: W.S. 12-4-102(a)(iv) & (v)

Each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock or ownership of the corporation, limited liability company, limited liability partnership, or limited partnership.

Each Officer, Director or LLC member must complete all of the information below.
(If more information is required, list on a separate piece of paper and attach to this application)

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip DO NOT LIST PO BOXES	Residence Phone Number	No. of Years in Corp or LLC	% of Corporate Stock or Ownership Held	Have you been convicted within the previous 10 years of:	
						a Felony Violation Relating to Alcoholic Liquor or Malt Beverages?	any Violation Relating to Alcoholic Liquor or Malt Beverages?
Scott Jennings		Fort Collins, CO 80524	970-420-7082	.25	58%	YES ☐ NO ☒	YES ☐ NO ☒
Marc Torres		Fort Collins, CO 80524	970-420-5255	.25	27%	YES ☐ NO ☒	YES ☐ NO ☒
Seth Larsen		Berthoud, CO 80513	970-222-9851	.25	10%	YES ☐ NO ☒	YES ☐ NO ☒
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

REQUIRED ATTACHMENTS:

- ☒ A statement indicating the financial condition and financial stability of the Applicant. W.S. 12-4-102(a)(vi).
- ☒ If transferring a license or permit to another Applicant, attach a form of assignment from the current licensee to the new Applicant authorizing the transfer. W.S. 12-4-601(b).
- ☒ A copy of any lease agreements. W.S. 12-4-103(a)(iii)
- ☒ Bar & Grill and Restaurant liquor license Applicants: attach a copy of the current Food Service Permit or the approved permit application for the Applicant and for the licensed building location. 12-4-413(a) / W.S. 12-4-407(a)
- ☐ If food and beverage services will be contracted or subcontracted attach a copy of the contract or lease agreement W.S. 12-4-201(m) / W.S. 12-4-301(e) / W.S. 12-4-403(b)
- ☐ If filing for a Golf Club or Social Club liquor license attach a copy of the club's bylaws W.S. 12-4-301(c)

OATH OR VERIFICATION

Requires signatures by **ALL** Individuals, **ALL** Partners, **ONE (1)** LLC Member, or **TWO (2)** Corporate Officers or Directors except that if all the stock of the corporation is owned by **ONE (1)** individual then that individual may sign and verify the application upon his oath, or **TWO (2)** Club Officers. W.S. 12-4-102(b)

Under penalty of perjury, and the possible revocation or cancellation of the license, I swear the above stated facts, are true and accurate.

STATE OF ~~WYOMING~~ ^{COLORADO})
COUNTY OF ~~LARIMER~~) SS.

Signed and sworn to before me on this 10th day of March, 20 25 that the facts alleged in the foregoing instrument are true by the following:

1) <u>[Signature]</u> (Signature)	<u>Marc Torres</u> (Printed Name)	<u>Member</u> Title
2) <u>[Signature]</u> (Signature)	<u>Scott Jennings</u> (Printed Name)	<u>Member</u> Title
3) <u>[Signature]</u> (Signature)	<u>Seth Larsen</u> (Printed Name)	<u>Member</u> Title
4) _____ (Signature)	_____ (Printed Name)	_____ Title
5) _____ (Signature)	_____ (Printed Name)	_____ Title

Witness my hand and official seal:

[Signature]
Signature of Notary Public

My commission expires: 10/20/2028

LAILA LAMBOURNE
NOTARY PUBLIC
STATE OF COLORADO
NOTARY ID 20044035686
MY COMMISSION EXPIRES 10/20/2028

CHeBA HUT

Cheba Hut Franchising Inc. for
Frontier Daze, LLC
3838 Atkin St.
Cheyenne, WY 82001

March 10, 2025

The Honorable

Patrick Collins, Mayor of Cheyenne

The Honorable

Pete Laybourn, Scott Roybal, Jeff White, Dr. Mark Rinne, Tom Segrave, Dr. Kathy Emmons, Dr. Michelle Aldrich, Ken Esquibel, Mark Moody, City Council Members

Dear Mayor and Members of the City Council,

Please accept this letter as our introduction and cover letter for our application for a Bar and Grill Liquor license for the city of Cheyenne. It has been a pleasure working with you all during the permitting and licensing process and we would like to thank you for your assistance in this endeavor. Cheba Hut Franchising, Inc. is based in Fort Collins, Colorado and are excited to be growing to Cheyenne by developing a company owned store at 3838 Atkin St. Cheba Hut was founded in 1998 in Arizona and has been a franchising company since 2001. There are currently 77 Cheba Huts in 17 states including franchises and company owned shops.

Renovations have been underway at the building at 3838 Akin St. previously home to the Dog Haus Biergarten which closed in November 2024. The new restaurant will be a fast casual sandwich shop with a separate bar in the dining room. The restaurant will seat approximately 50 people with additional seating available on a large patio area outside. Cheba Hut is looking forward to serving the community with quality sandwiches and a casual social gathering place.

We look forward to working with the city of Cheyenne on this application and licensing process and we are happy to answer any questions or provide any additional information you may require.

Sincerely,



Marc Torres – CEO,
Cheba Hut Franchising, Inc.

RESTAURANT LEASE

BY AND BETWEEN

RCB NORTH 1, LLC

“LANDLORD”

AND

FRONTIER DAZE LLC

“TENANT”

Effective
Date: 12/20/2024

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RESTAURANT LEASE AGREEMENT

THIS RESTAURANT LEASE AGREEMENT (this “*Lease*”), effective for all purposes as of December 12/20/2024, 2024 is entered into by and between RCB NORTH 1, LLC, a Utah limited liability company (“*Landlord*”), and Frontier Daze LLC, a Wyoming limited liability company (“*Tenant*”).

SUMMARY OF CERTAIN LEASE PROVISIONS

The following summary is qualified in its entirety by, and should be read in conjunction with, the more detailed information appearing elsewhere in this Lease. Cross-references have been provided for convenience and designate some, but not necessarily all, of the other Articles where references appear in the table below. In the event that any term or condition set forth in the summary below conflicts with any Article in this Lease, then the terms and conditions set forth in the Articles shall control.

	<u>Item</u>	<u>Description</u>	<u>Cross Reference</u>
A.	LANDLORD:	RCB North 1, LLC	Introduction
B.	TENANT:	Frontier Daze LLC	Introduction
C.	PREMISES:	Lot 8, Block 1, Pershing Marketplace, 4 th Filing (North College Drive, Cheyenne, Wyoming)	Exhibit A, B
D.	ESTIMATED COMMENCEMENT DATE	60 days from lease signing	2.1, Exhibit C
E.	ESTIMATED RENT	Tenant shall pay fifty percent (50%) of the Minimum Annual Rent beginning on the sixty-first (61st) day following lease execution, and one hundred percent (100%) of the Minimum Annual Rent commencing on the ninety-first (91st) day. Tenant shall be responsible for all expenses effective from the effective date.	2.1, Exhibit C
F.	TERM:	Initial term of five (5) Lease Years	2.1; 2.2
G.	RENEWAL OPTIONS:	Three 5 Lease Years	2.2
H.	BASE RENT:	\$110,400 per Lease Year (\$9,200 per month) for the first 5 Lease Years, subject to escalation as provided herein.	3.2
I.	ADDITIONAL RENT:	Per Article 3.3 & 3.4	3.3 & 3.4
J.	USE	Cheba Hut Restaurant	2.3
K.	IMPROVEMENTS		Exhibit D
L.	GUARANTOR	Cheba Hut Franchising, Inc.	Exhibit G

TERMS AND CONDITIONS

ARTICLE 1. PREMISES

1.1 **Identification of Premises.** In consideration of the rents, covenants, and agreements contained herein, Landlord leases to Tenant and Tenant leases from Landlord that certain restaurant located at Lot 8, Block I, Pershing Marketplace 4th Filing, Cheyenne, Wyoming, (3838 Atkin Street) as more particularly identified on **Exhibit A** (the “***Premises***”). The building constituting a portion of the Premises, with the street address set forth on **Exhibit A** attached hereto, is sometimes referred to hereinafter as the “***Building***.”

1.2 **Size.** The parties estimate that the Building consists of a floor area of approximately 2,934 rentable square feet as generally set forth on the floor plan attached hereto as **Exhibit B**. The parties acknowledge that the Premises includes, and Tenant shall have exclusive use of a patio adjacent to the Building with approximate 934 square feet. The patio square footage is not considered in rent calculations.

ARTICLE 2. TERM AND USE

2.1 **Rent Commencement Date and Term.** The initial term (the “***Initial Term***”) of this Lease shall be for a period of five (5) Lease Years (defined below) beginning on the Lease Commencement Date and ending at midnight on the last day of the last full Lease Year in the Term. For purposes of this Lease, “***Effective Date***” means the date that all parties are in receipt of the fully executed Lease Agreement and provided that Landlord has delivered possession of the Premises to Tenant as set forth in Section 2.2. The Lease Commencement Date and Rent Commencement Date are the same date. For purposes of this Lease, “***Rent Commencement Date***” means the date that is 60 days after lease signing. For purposes of this Lease, “***Lease Month***” means each consecutive one-month period commencing on the Lease Commencement Date, and a “***Lease Year***” means a period of 12 Lease Months. Should the Rent Commencement Date begin on a date other than the first of the month, the first month’s rent shall be prorated and paid along with the next month’s rent.

2.2 **Delivery Condition and Landlord Representations and Warranties.** Landlord shall deliver the Premises to Tenant on the Effective Date in broom clean and empty condition consistent with this Lease and substantially similar to the condition that the Premises were in on October 16, 2024. As of the Effective Date, Landlord represents and warrants that (i) no other party has any lawful claim to use or possess the Premises; (ii) there are no claims, local zoning laws or rules, regulations, exclusive or restricted uses governing the Premises that that would prevent or impair Tenant’s operation of the Premises for the use permitted hereunder; and (iii) the Building and Premises are in compliance with all applicable federal, state and local laws, statutes, codes, rules and regulations. In addition, Landlord shall deliver the Premises to Tenant with all of the “Permanent Fixtures” and “Movable Property” as listed and defined on Exhibit F.

2.3 **Renewal Options.** Provided Tenant is not late on rent payments or in default of any material term, condition or covenant contained in this Lease as of the date that Tenant provides its Renewal Notice or the date when the Renewal Term starts, Tenant shall have the option to extend the Initial Term for an additional three five (5) Lease Years periods (the “***Renewal Term***”) on the

same terms and conditions as provided herein at fair market value, as determined below provided that fair market rent shall not increase by more than 10% from the previous term's final year, for the first two Renewal Terms, and no more than 20% for the third and final Renewal Term, and not less than rent charged in previous term's final year Base Rent. The Initial Lease Term and any subsequent Renewal Term may be referred to herein as the "***Lease Term***" or "***Term***." Notice of the exercise of such option to renew (the "***Renewal Notice***") shall be given by Tenant to Landlord, in writing, no later than 360 days before the expiration of the initial term. The Renewal Notice shall unequivocally determine Tenant's desire to extend the Lease Term and shall be given in accordance with the provisions of Article 25 of this Lease. Landlord shall, within ten (10) days after receipt of Renewal Notice, deliver to Tenant Landlord's written determination of the then-prevailing fair market rent for the Premises ("***Landlord's Rent Determination***"). Tenant shall thereafter have ten (10) days to notify Landlord in writing of its acceptance of Landlord's Rent Determination or to deliver to Landlord its own determination of the then-applicable fair market rent, in which case Landlord and Tenant shall have an additional ten (10) days to negotiate a fair market rent acceptable to both Landlord and Tenant. If Landlord and Tenant are unable to agree on the fair market rent during such additional ten (10) day period, Landlord and Tenant shall each appoint a certified appraiser with at least five years' experience, valuing leased premises in the state of Wyoming that are substantially similar to the Leased Premises ("***Certified Appraiser***"). Those two Certified Appraisers shall mutually select a third Certified Appraiser. The three Certified Appraisers shall each independently determine the fair market rent of the Premises and the average of the two values that were closest to one another ("***Appraised Value***") shall be the Base Rent for the Renewal Term. The three Certified Appraisers shall deliver their appraisals to Landlord and Tenant within 30 days of their collective appointment. Each party shall bear the costs, fees and expenses of their appointed Certified Appraiser and shall split the cost of the third Certified Appraiser.

2.4 Use. Tenant shall only use the Premises for the operation of a restaurant and lawful related uses associated with the sale and consumption of sub-sandwiches, soups, nachos, meatballs and desserts, including the sale of alcoholic and non-alcoholic beverages, teas and energy drinks and other products and services nationally sold in Cheba Hut locations. Tenant shall not use the Premises for any purposes other than those enumerated in the preceding sentence without the prior written consent of Landlord, not to be unreasonably withheld, conditioned or delayed. Tenant will keep the Premises in a clean and orderly condition, free of objectionable noise, odors or nuisances.

ARTICLE 3. RENT; PERCENTAGE RENT, ADDITIONAL RENT AND IMPOSITIONS

3.1 General. The Base Rent, as defined below, and all Additional Rent, as also defined below are sometimes collectively referred to herein as "***Rent***" shall be payable as of the dates set forth in Section 3.2 and 3.3. If the Base Rent shall be determined for a period less than a full Lease Month, then the Base Rent for such period shall be prorated accordingly. All payments of Rent and other sums shall be made in lawful monies of the United States and paid or mailed to the address for Landlord in accordance with the provisions of Article 27 of this Lease, automated clearing house (ACH) transfer, or wire transfer as agreed upon in writing by the Landlord and Tenant. Landlord may designate, in writing any other payee or address to which Tenant shall pay the Base Rent, in its sole discretion. Rent due during each Lease Year shall be payable without demand, set-off or deduction, in equal monthly installments and except for any partial Lease Month for which Base Rent may be due shall be due and payable on the first of the next proceeding Lease

Month.

3.2 Base Rent. Tenant shall pay to Landlord, for the use and occupancy of the Premises, at the times and in the manner provided in this Lease, the following amounts. The base rent (the "Base Rent") will be: (a) \$9,200.00 monthly (\$37.63 per square foot) for the first (1st) through fifth (5th) Lease Year. Landlord and Tenant shall enter into a rent commencement certificate in the form attached hereto as Exhibit C (the "Rent Commencement Certificate"). Tenant shall commence paying Base Rent on the Rent Commencement Date provided that from the 61st day following the Effective Date to the 90th day following the Effective Date, Tenant shall pay Base Rent in the amount of \$4,600.00 per month (\$18.82 per square foot). Tenant shall commence paying full minimum Base Rent on the 91st date from the Rent Commencement Date.

3.3 Additional Rent; Impositions; Utilities.

a. *Additional Rent.* In addition to Base Rent, Tenant shall pay to Landlord, for the use and occupancy of the Premises, all additional amounts required to be paid by Tenant to Landlord hereunder, whether designed as "Additional Rent" hereunder or not. All amounts payable by Tenant to Landlord hereunder are referred to herein as "***Additional Rent.***" Except as otherwise described herein, Additional Rent shall be payable the same time as the payment of Base Rent provided that Tenant shall begin paying the Additional Rent on the Effective Date.

b. *Impositions.*

i. Tenant shall pay or shall cause to be paid all Impositions, as defined in Section 3.6 directly to the governmental authority charged with the collection thereof. Each Imposition, or installment thereof during the Term shall be paid not later than seven (7) days prior to the due date thereof. However, if, by law, any Imposition may at the option of the taxpayer be paid in installments (whether or not interest shall accrue on the unpaid balance of such Imposition), Tenant may exercise the option to pay the same in such installments and shall be responsible for the payment of such installments only, together with applicable interest, if any, provided that all such installment payments together with applicable interest, if any, relating to periods prior to the expiration of the Term shall be made prior to the expiration of the Term. Tenant shall promptly notify Landlord if Tenant shall have elected to pay any such Imposition in installments.

ii. Tenant shall, within seven (7) days following each due date, furnish to Landlord official receipts of the appropriate governmental authority, or other evidence reasonably satisfactory to Landlord, evidencing the payment of such Impositions.

iii. Tenant shall not be required to pay municipal, state or federal income, gross receipts, inheritance, estate, succession, profit, capital or transfer gains taxes of Landlord, or any corporate franchise tax imposed upon Landlord, or any transfer or gains tax imposed on Landlord.

iv. Any Imposition relating to a period, a part of which is included within the Term and a part of which is included in a period of time before the Rent Commencement

Date or after the expiration of the Term (whether or not such Imposition shall be assessed, levied, confirmed, imposed upon or in respect of or become a lien upon the Premises, or shall become payable, during the Term), shall be apportioned between Landlord and Tenant as of the Commencement Date or expiration of the Term, as the case may be, so that Tenant shall pay only that portion of such Imposition which that part of such fiscal period included in the period of time after the Commencement Date or before the expiration of the Term bears to such fiscal period, and Landlord shall pay the remainder thereof.

c. *Utilities.* Notwithstanding the payment of Additional Rent, Tenant is also solely obligated to pay for Tenant's use of utilities regarding the Premises, which Landlord shall ensure shall be separately metered, during the Term (as more particularly set forth in Article 14 below). If requested by Landlord, Tenant will pay such utilities directly to the applicable governmental authority or directly to the applicable utility. Tenant shall pay all utility fees, including but not limited to hook-up.

d. *Additional Expenses.* Tenant shall pay all additional expenses directly, including taxes, utilities, maintenance (as required by the Lease), and Pershing Marketplace Association Fees (the "*Association*"). Landlord shall provide Tenant with any Association related notifications about expense changes, annual approved budgets, expense reconciliations, or other such applicable documents. In the instance of an Association reconciliation resulting in an overage paid return to the Landlord, the Landlord will apply this overage return to the Tenant account. As of the Effective Date, the Association Fees are \$269.82 per month. Tenant shall be responsible for water, sewer, sanitation, heat, electricity, janitorial services, interior maintenance servicing the Premises, property taxes related to the Premises. Subject to the terms of this Lease, Tenant shall also be responsible for maintenance of all major mechanical systems, including the HVAC after applicable warranty period expires. Landlord shall obtain insurance coverage for the Premises as required under Article 17 of the Lease. Landlord shall pay the insurance premiums as outlined in section 17.7 and Tenant shall reimburse Landlord for the premium expense within sixty (60) days following Landlord's delivery of the premium insurance carrier's annual invoice for the policies pertaining to the Parcel and Premises as noted in this Lease only. Nonpayment of additional expenses shall be deemed a default and subject to Article 21 of this Lease.

3.4 Fee Mortgage. If the Premises are encumbered by a Fee Mortgage, the following shall apply: (a) if any Fee Mortgagee requires that amounts (estimated and/or actual) necessary to pay any Impositions and/or insurance premiums be deposited with it in advance (which right, if any, shall be subject to the rights of a Leasehold Mortgagee), Tenant, upon at least seven (7) days' prior written notice from Landlord, shall pay the amounts so required to the Fee Mortgagee in accordance with the requirements of such Fee Mortgagee and such payments shall constitute full satisfaction of Tenant's obligations hereunder with respect to the amounts paid to the Fee Mortgagee; (b) if any Imposition for which such payment is timely made to the Fee Mortgagee is not paid when due, Landlord (and not Tenant) shall take such steps as are necessary to cause the same to be paid, unless Tenant has been instructed in writing by Landlord to pay such Imposition directly to the Fee

Mortgagee; and (c) if any Imposition for which such payment has been made to the Fee Mortgagee becomes delinquent, Tenant may, but is not obligated to, pay the same and deduct the amount of such payment, plus any interest and penalties and any other reasonable expenses of Tenant incurred in connection therewith, from the next installment or installments of Rent.

3.5 Absolute Net Lease. Landlord and Tenant agree and hereby acknowledge that this Lease is intended to be an absolute net lease, meaning that costs incurred for repairing, maintaining and insuring the Premises hereunder, and the costs of keeping the Premises and Improvements in compliance with all laws, regulations and covenants applicable thereto, including without limitation payment of taxes, assessments, and any other charges related to or imposed on the Premises by a governmental or other valid authority with jurisdiction over the Premises, shall be the sole and exclusive obligation of Tenant except as otherwise provided herein. Unless caused by the negligence or misconduct of Landlord or its agents, employees or contractors, for the avoidance of doubt, Landlord shall have no obligation to the repair, maintain, or replace any improvement, including the Building, on or in the Premises, except (i) insofar as such repairs, maintenance or replacement are covered by the warranties provided by contractors, manufacturers, and suppliers, in which case Landlord shall assign, without recourse and to the extent allowable by law, such warranties to Tenant; and (ii) to the extent that Landlord is responsible for such repairs, maintenance and replacement as set forth in this Lease. Tenant shall be responsible for all repairs, maintenance and replacements necessary to keep the Premises in good condition, repair and legally/administratively compliant, including, without limitation, glass, paint, and other finishes inside and externally. Landlord is responsible for the slab, foundation, structural walls and roof structure.

3.6 Certain Definitions. The following terms shall have the respective meanings ascribed:

“Impositions” shall mean any and all of the following but only to the extent that they are related to improvements or services that benefit Tenant, or are specific to the Premise or Building: (a) property taxes of every kind and nature (including any school, county, city, town or other taxes); (b) real property assessments (whether general, special, business improvement district or otherwise); (c) Tenant’s but not Landlord’s personal property taxes; (d) occupancy and rent taxes; (e) water, water meter and sewer rents, rates and charges (excluding connection and tap-in fees); (f) excises; (g) levies; (h) permit fees; (i) service charges with respect to police protection, fire protection, street and highway construction, maintenance and lighting, sanitation and water supply, if any; (j) fines, penalties and other similar or like governmental charges applicable to the foregoing and any interest or costs with respect thereto (but only to the extent caused by Tenant); and (k) any and all other governmental levies, fees, rents, assessments or taxes and charges, general and special, ordinary and extraordinary, foreseen and unforeseen, of any kind and nature whatsoever, and any interest or costs with respect thereto, which at any time during the Term are: (i) assessed, levied, confirmed, imposed upon or out of or in respect of the Premises or any document to which Tenant is a party creating or transferring an interest or estate in the Premises (excluding any capital gains taxes imposed in connection with the execution of this Lease), or the use and occupancy thereof by Tenant; or (ii) encumbrances or liens on: (A) the Premises; or (B) the sidewalks or streets in front of or adjoining the Premises; or

(C) any vault (other than a vault in respect of which a utility company is obligated to pay any charge specified above or which is exempt from any such charge by reason of use thereof by any such utility company), passageway or space in, over or under such sidewalk or street; or (D) any other appurtenances of the Premises; or (E) any personally used in the operation thereof; or (F) the Rent (or any portion thereof). Notwithstanding the foregoing, Impositions shall not include (i) payments or other debt service on any Fee Mortgage or rental payments under any ground lease; (ii) any income, franchise, corporate, business, capital gains, estate, gift, value added, gross receipts or transfer tax to be paid by Landlord; (iii) more than one (1) increase in taxes above the initially allocated taxes resulting from the transfer or sale of the Building or land on which the Building is located or any portion of Landlord's interest in the Building or land during the Tenant's initial Lease Term or within five (5) years of the previous such sale; (vi) any water or sewer tap-in or connection charges;

"Fee Mortgage" shall mean any financing obtained by Landlord, as evidenced by any mortgage, deed of trust, assignment of leases and rents, financing statement or other instruments, and secured by the interest of Landlord in the Premises, including any extensions, modifications, amendments, replacements, supplements, renewals, refinancings and consolidations thereof.

"Fee Mortgagee" shall mean the holder of a Fee Mortgage.

ARTICLE 4. IMPROVEMENTS

4.1 Landlord has provided tenant with certain tenant improvements (the ***"Improvements"***), as generally set forth on Exhibit D hereto. Landlord shall assign all warranties to Tenant to which Landlord may have rights applicable to the Premises or any portion thereof provided by any manufacturers, designers and constructors of the Premises or any portion thereof. Landlord agrees to take such other actions as may be necessary to effectuate such assignment of warranties to Tenant.

4.2 On or before the 30th day following the date that Tenant opens its business to the general public at the Premises, Landlord shall deliver \$20,000.00 to Tenant as a tenant improvement allowance (***"Tenant Improvement Allowance"***). If Landlord does not pay the Tenant Improvement Allowance to Tenant within such 30-day period, Base Rent and all other charges payable under the Lease shall fully abate until the amount abated equals the Tenant Improvement Allowance. All improvements funded by the Tenant Improvement Allowance must be approved in writing by Landlord and remain part of the Premises following expiration of the Lease. Any unused Movable Property listed on Exhibit F will be removed from the Premises by the Landlord after written notice from the Tenant that the equipment will not be used.

4.3 Tenant shall be responsible for enclosing the outdoor seating and dining area located on the south end of the building within ten (10) months of lease execution. Said enclosure shall remain part of the Premises following the expiration of the Lease.

ARTICLE 5. SUBORDINATION, ESTOPPEL CERTIFICATE AND ATTORNMEN;

MORTGAGES

5.1 Subordination and Attornment. Tenant shall, at the request of Landlord, execute a Subordination, Non-Disturbance and Attornment Agreement ("SNDA") in commercially reasonable form delivered to Tenant by Landlord, providing that, among other things, Tenant will, in writing, subordinate its rights hereunder to the interest of any ground lessor of the Building in which the Premises is situated and to the lien of the mortgage or deed of trust of any lender encumbering the land and improvements of which the Premises is a part, and upon any improvements hereafter placed upon the land of which the Premises is a part and to all advances made or to be made upon the security thereof. Provided that the applicable lender executes the SNDA referred to above, Tenant agrees and acknowledges that this Lease is subordinate to the lien of any mortgage or deed of trust of such lender or ground lessor and if such lender or ground lessor succeeds to the interests of Landlord under this Lease, then (a) Tenant shall be bound to such lender under all of the terms, covenants and conditions of this Lease for the remaining balance of the term hereof, with the same force and effect as if such lender were the lessor hereunder, and Tenant does hereby agree to attorn to such lender as its lessor without requiring the execution of any further instruments immediately upon such lender succeeding to the interests of Landlord under this Lease (Tenant agrees to execute and deliver to such lender any instrument reasonably requested by it to evidence such attornment); and (b) subject to the observance and performance by Tenant of all the terms, covenants and conditions of this Lease on the part of Tenant to be observed and performed, such lender shall recognize the leasehold estate of Tenant under all of the terms and conditions of this Lease for the remaining balance of the term with the same force and effect as if such lender were the lessor under this Lease. In the event any proceedings are brought for foreclosure, or in the event of the exercise of the power of sale under any mortgage or deed of trust, upon any such foreclosure or sale, Tenant agrees to recognize such beneficiary or purchaser as Landlord under this Lease, provided Tenant's rights under this Lease continue unabated. Landlord agrees to use commercially reasonable efforts to obtain an SNDA from any ground lessor or Fee Mortgagee existing as of the Effective Date.

5.2 Fee Mortgages. Landlord may mortgage its fee interest in the Premises.

5.3 Leasehold Mortgages.

a. Tenant, and every permitted successor and assign of Tenant, shall have the right to encumber its interest in this Lease, with Landlord's prior written consent, not to be unreasonably withheld, conditioned or delayed, under any one or more "***Leasehold Mortgages***", provided, however, that all rights acquired under the Leasehold Mortgage(s) shall be subject to each of the provisions set forth in this Lease and to all rights and interests of the Landlord therein. Landlord further consents to any encumbrance of Tenant's interest in this Lease resulting from the refinancing of the indebtedness initially secured by the Leasehold Mortgage. If, from time to time, Tenant or Tenant's permitted successors or assigns shall encumber this Lease with a Leasehold Mortgage, and if the holder of the Leasehold Mortgage (the "***Leasehold Mortgagee***") delivers to Landlord an executed counterpart of such Leasehold Mortgage, together with each assignment thereof certified by the holder of the Leasehold Mortgage to be true together with written notice specifying the name and address of the Leasehold Mortgagee and the pertinent recording data with respect to the Leasehold Mortgage, Landlord agrees that, anything in this Lease to the contrary

notwithstanding, from and after the date of receipt by Landlord of such notice and for the duration of such Leasehold Mortgage, the provisions of this Article 5 shall apply.

b. Landlord agrees that in the event of a termination of this Lease by reason of any default by Tenant, or if Tenant rejects the Lease in a bankruptcy proceeding, and subject to the rights herein granted to Leasehold Mortgagee, Landlord will enter into a lease (the "**Mortgagee Lease**") of the Premises with the Leasehold Mortgagee for the remainder of the Term effective as of the date of termination, at the same Rent and upon the same terms, provisions, covenants and agreements as contained in this Lease, provided:

i. Leasehold Mortgagee shall make written request upon Landlord for the execution of such a Mortgagee Lease within ten (10) days after the date of termination and shall, within fifteen (15) days after its receipt from Landlord of a written statement of all sums then due to Landlord under this Lease, pay to Landlord all such sums.

ii. Leasehold Mortgagee shall pay to Landlord at the time of the execution and delivery of the Mortgagee Lease any sums that at the time of its execution and delivery would be due pursuant to this Lease but for the termination, and in addition, all reasonable attorney's fees and expenses which Landlord shall have actually incurred.

iii. Leasehold Mortgagee shall perform and observe all covenants contained in the Mortgagee Lease on Tenant's part to be performed during such period of time commencing with the date of the execution of the Mortgagee Lease and terminating upon the expiration or earlier termination of the Mortgagee Lease or the abandonment or surrender of possession of the Premises under the Mortgagee Lease and shall further remedy any other conditions that Tenant was obligated to perform under the terms of this Lease.

iv. Leasehold Mortgagee, as Tenant under the Mortgagee Lease, shall have the same right, title and interest in and to the Premises and the right to use the Improvements thereon as Tenant had under this Lease.

ARTICLE 6. CONDITION OF PREMISES

Tenant acknowledges that it has inspected the Premises and accepts the Premises in good condition including all structural components are in good working order and accepts the Premises without warranty or representation of Landlord of any kind or nature whatsoever, express or implied, except as stated herein. Tenant represents and warrants that it has inspected the Premises prior to the execution of this Lease and that the condition and construction of the Premises is acceptable to Tenant hereunder. Landlord shall be responsible for all repairs, maintenance and replacement of the HVAC system (i) for the first two years of the Lease Term and (ii) after the first two years of the Lease Term, to the extent that the cost of such repair maintenance or replacement of the HVAC system exceeds \$2,500.00 in any 12 month period, so long as said repairs are not caused by Tenant or Tenant's agents. Landlord represents and warrants that all mechanical items (plumbing, electrical, HVAC, etc.) are in good working condition as of the Effective Date. Landlord represents and warrants that the building structure, roof, walls, and foundation are in good condition and that the Landlord will repair and maintain those structural elements throughout the Lease Term.

ARTICLE 7. REPAIRS AND MAINTENANCE

Except as otherwise specifically set forth herein, Tenant shall, at its sole cost and expense, maintain the entire Premises, including, but not limited to, the restaurant and any other improvements now or hereafter existing therein or thereon, in good condition and at all times to the conditions required and/or prescribed by Landlord. Tenant's obligation to maintain and repair includes specifically, but is not to be limited to, the maintenance and repair and/or replacement of the following: fixtures, facilities or equipment contained inside the Premises, routine maintenance of the heating, air-conditioning, electrical and plumbing systems inside the Premises; exterior and interior doors; windows and glass; landscaped areas and any signs or other equipment installed and used by Tenant. Tenant shall make such replacements of any of the foregoing as may become reasonably necessary during the term of this Lease or any extension thereof. The provisions of this Article 7 shall not apply in the case of damage or destruction by fire or other casualty within two (2) years of the end of the initial term of this Lease, or any extension thereof, or in the case of eminent domain, in which events the obligations of Tenant shall be controlled by either Article 16 or Article 25 hereof, as the case may be. In carrying out its obligations as set forth above in this Article 7, Tenant agrees to conform to all requirements of law, the regulations of applicable public authorities, and the requirements of insurers. Further, Tenant shall not take any action nor permit any action to be taken which would result in or cause the loss, termination or forfeiture of any easement right appurtenant to the Premises or which would result in the violation of any covenants, conditions or restrictions burdening the Premises.

Tenant shall also be responsible to pay all janitorial and cleaning costs to keep the Premises clean and free of debris. If repairs for which the Tenant is responsible are not completed within ten (10) days after Tenant has received written notice from Landlord of such state of disrepair or if such repairs cannot reasonably be completed within such ten (10) day period and Tenant shall fail to commence such repairs within ten (10) days after notice and proceed diligently thereafter, then Landlord may perform such repairs and charge the actual cost thereof to Tenant as Additional Rent.

Notwithstanding anything herein to the contrary, Landlord shall be responsible for all maintenance and repairs necessary as a result of the negligence or willful misconduct of Landlord, its employees, agents, contractors and representatives. Landlord is responsible for the slab, foundation, structural walls and roof structure of the Premises. Landlord is responsible for making any and all necessary capital repairs to the Premises as reasonably required by Tenant or as determined by Landlord in its discretion, including all repairs and replacement of the parking lots, sidewalks, and driveways and the structural components of the Building and those components of the mechanical systems of the Building to the extent that they are not within the four walls of the Building.

ARTICLE 8. ENVIRONMENTAL MATTERS

8.1 Warranties of Tenant and Indemnification of Landlord. For purposes of this Lease, the term "**Hazardous Materials**" shall mean any hazardous or toxic substance or any substance

which is or becomes regulated by any governmental authority, including without limitation any substance which is (a) defined as a "Hazardous Substance," "Hazardous Waste," or "Extremely Hazardous Substance" pursuant to any provision of the United States Code, including United States Code sections commonly known as the Federal Water Pollution Control Act, the Federal Resource Conservation and Recovery Act, the Comprehensive Environmental Response Compensation and Liability Act, and the Superfund Amendments and Reauthorizations Act of 1986, (b) defined as a hazardous substance or material pursuant to any state or local law, ordinance or regulation governing the Premises ("**Hazardous Material Law**"), (c) petroleum or a petroleum by-product, (d) asbestos or asbestos containing material, (e) a pesticide, (f) a polychlorinated biphenyl, or (g) or any other substance known to cause cancer or other illnesses. Tenant shall indemnify, defend and hold Landlord and its officers, managers, members, shareholders, employees, agents, successors and assigns harmless from, and Landlord shall have no liability for or responsibility to pay, any claims, judgments, damages, fines, penalties, costs, liabilities (including sums paid in settlement of claims) or loss including attorney's fees, consultant's fees, and expert fees which arise during or after the Term in connection with the presence of Hazardous Materials in, on or under the Building, including, but limited to the Premises, caused by the activities of Tenant, unless and to the extent the presence of such Hazardous Materials is caused by Landlord, its officers, employees, agents or contractors, or by any other third party not subject to Tenant's control. Also,

a. Tenant warrants that it shall not cause any Hazardous Materials to be used, generated, stored or disposed of on, under or about, or transported to or from the Premises or the Building, unless the same is specifically approved in advance by Landlord, in writing, other than small quantities of retail, household and office chemicals customarily sold over-the-counter to the public and which are related to Tenant's permitted uses of the Premises and which are used and disposed of in compliance with all Hazardous Material Law or other applicable law;

b. Tenant warrants that it shall comply with all obligations imposed by Hazardous Material Law, any other applicable law, environmental laws and all other restrictions and regulations upon the use, generation, storage or disposal of Hazardous Materials at, to or from the Premises;

c. Tenant warrants that it shall deliver promptly to Landlord true and correct copies of all notices received by Tenant from any governmental authority with respect to the use, generation, storage or disposal by Tenant of Hazardous Materials at, to or from the Premises or Building and shall immediately notify Landlord both by telephone and in writing of any unauthorized discharge of Hazardous Materials by Tenant that Tenant reasonably believes poses an imminent hazard to the Premises, the Building, the public or the environment;

d. Tenant shall complete fully, truthfully and promptly any questionnaires sent by Landlord with respect to Tenant's use of the Premises and its use, generation, storage and disposal of Hazardous Materials at, to or from the Premises, which are reasonably required;

e. If Landlord conducts any environmental inspections because it has reasonable cause to believe that Tenant's activities have or are likely to result in a violation of Hazardous Material Law or any other applicable law or a release of Hazardous Materials on the Premises or the Building

and such violation by Tenant has actually occurred, then Tenant shall pay to Landlord, as Additional Rent, the reasonable costs incurred by Landlord for such inspections;

f. Tenant shall cease immediately upon written notice from Landlord any activity which violates any Hazardous Material Law or any other applicable law; and

g. After notice to and approval by Landlord, which approval shall not be unreasonably withheld, Tenant shall promptly remove, clean up, dispose of or otherwise remediate, in accordance with Hazardous Material Law, or any other applicable law and good commercial practice, any Hazardous Materials on, under or about the Premises resulting from Tenant's acts on the Premises. The foregoing indemnifications of Tenant shall survive any assignment, transfer or termination of this Lease.

ARTICLE 9. ALTERATIONS TO PREMISES

Tenant shall not make any material exterior or structural alterations in any portion of the Premises, nor any alterations in the storefront or the exterior of the Premises without, in each instance, first obtaining the express written consent of Landlord, which shall not be unreasonably withheld, conditioned or delayed. All alterations, additions and improvements made by Tenant to or upon the Premises, except for Tenant's Property (defined below), shall at once when made or installed or be deemed to have been attached to the Premises and to have become the property of Landlord; provided, however, if prior to termination of this Lease, or thirty (30) days thereafter, Landlord so directs by written notice to Tenant, Tenant shall promptly remove the additions, improvements, or fixtures and shall repair any damage occasioned by removal of additions, improvements, or fixtures and in default thereof Landlord may effect said removal and repairs at Tenant's sole expense.

ARTICLE 10. FIXTURES AND PERSONAL PROPERTY

10.1 Subject to Article 12, any trade fixtures, furniture, business equipment, inventory, trademarked items, signs, counters, shelving, showcases, mirrors and other personal property installed in or on the Premises by Tenant at its expense and which may be removed without material damage to the Premises (collectively "***Tenant's Property***"), shall remain the property of Tenant. Landlord agrees that Tenant shall have the right, at any time or from time to time, to remove any and all of Tenant's Property. Tenant at its expense shall immediately repair any damage occasioned by the removal of Tenant's Property and upon expiration or earlier termination of this Lease, shall leave the Premises in a neat and clean condition, free of debris, normal wear and tear and casualty and condemnation excepted. Notwithstanding Tenant's payment of Additional Rent, Tenant shall pay before delinquency all taxes, assessments, license fees and public charges levied, assessed or imposed upon its business operation in the Premises as well as upon Tenant's Property, or upon the Premises. If any such items of property are assessed with property of Landlord, then such assessment shall be equitably divided between Landlord and Tenant to the end that Tenant shall pay only its equitable portion of such assessment. Landlord shall reasonably determine the basis of so prorating any such assessments and such determination shall be binding upon both Landlord and Tenant.

10.2 Subject to Article 4, Tenant hereby acknowledges and agrees that the Permanent Fixtures identified in **Exhibit F** belong solely to Landlord and cannot be encumbered by Tenant and are to be considered Landlord's property.

ARTICLE 11. SIGNAGE

Tenant shall have exclusive rights to maximum allowable exterior signage within local laws and association rules. Landlord to cooperate with tenant in obtaining appropriate permits and/or approvals. Tenant may place (i) permanent signage referring to its operating business conducted on or about the Premises, and (ii) such temporary advertising or other signage is in compliance with the applicable laws, regulations and/or ordinances of applicable governmental authorities and the reasonable signage rules and regulations promulgated by Landlord from time to time. Landlord will cooperate with Tenant in applying for and obtaining all required sign permits and approvals. All signage shall be at the sole cost and expense of Tenant, and Tenant shall maintain all signage in good condition and repair. Notwithstanding the preceding, in no circumstance shall Tenant place any balloon or similar temporary promotional advertisements on or about the exterior of the Premises without Landlord's prior written consent, not to be unreasonably withheld, conditioned or delayed. Tenant will be entitled to a double paneled position on the Monument in the same panel as the former Tenant, or higher if possible. Tenant to submit signage proposals for Landlord approval.

ARTICLE 12. LIENS

12.1 Grant of Lien. As additional security for the payment of rent and the performance of all obligations under this Lease, the Tenant hereby grants to the Landlord a continuing lien and security interest in and to all equipment, fixtures, furniture, inventory, and other personal property of the Tenant located on or used in connection with the Premises, whether now owned or hereafter acquired (collectively, the "Tenant's Property").

a. Tenant agrees to execute any documents, including but not limited a UCC-1 Financing Statement, and take such other actions as the Landlord may reasonably require to perfect and maintain Landlord's lien and security interest in the Tenant's Property. The Tenant further consents to the Landlord filing such documents without Tenant's signature.

b. Notwithstanding the foregoing, the lien granted herein shall not apply to any property of the Tenant that is subject to a prior perfected security interest or that is exempt from such lien under applicable law. Landlord agrees to subordinate its security interest granted hereunder to any bona fide third party lender of Tenant.

12.2. Tenant shall not permit to be created nor to remain undischarged any lien, encumbrance or charge arising out of any work or work claim of any contractor, mechanic, laborer of Tenant or material supplied by a materialman to Tenant which might be, or become, a lien or encumbrance or charge upon the Premises or the Building. If any lien or notice of lien on account of an alleged debt of Tenant or any notice of contract by a party engaged by Tenant or Tenant's contractor to work in the Premises shall be claimed against the Premises or the Building, Tenant shall, within thirty (30) days after receiving notice of the claim, cause the same to be discharged of

record by payment, deposit or bond. Tenant's failure to do so shall, subject to the notice and opportunity to cure provisions contained herein, constitute a default under this Lease and Landlord shall have the remedies available in Article 22 of this Lease.

ARTICLE 13. LAWS AND ORDINANCES

13.1 Compliance. Tenant agrees to comply with all laws, ordinances, orders and regulations regarding Tenant's use, occupancy or alteration of the Premises, or the cleanliness, safety or operation thereof. Tenant agrees to comply with the reasonable regulations, requirements, or recommendations with respect to the use, occupancy or alteration of the Premises or the cleanliness, safety or operation thereof made or issued by any insurance underwriter, inspection bureau or similar agency that may affect the insurance coverage for the Premises, provided such regulations, requirements, or recommendations do not significantly and unreasonably affect Tenant's use of the Premises. Tenant also agrees to permit Landlord to comply with such regulations, recommendations requirements with respect to any portion of the Premises maintained by Landlord.

13.2 Illegal and Improper Use; Nuisance. Tenant agrees not to (i) permit any illegal practice to be carried on or committed on the Premises; (ii) make use of or allow the Premises to be used for any purpose that might invalidate or increase the rate of insurance therefor; (iii) keep or use or permit to be kept or used on the Premises any flammable fluids, gases, or explosives without the prior written permission of Landlord except for normal cleaning products; (iv) use the Premises for any purpose whatsoever which might create a nuisance; (v) deface or injure the Premises or the Building; (vi) overload the floor; (vii) commit or suffer any waste; or (viii) install any electrical equipment that overloads lines.

13.3 Electrical Equipment. In connection with any electrical equipment on the Premises, Tenant shall, at Tenant's own expense, make from time-to-time whatever changes are reasonably necessary to comply with the requirements of the insurance inspectors, underwriters, government authorities and codes.

13.4 ADA. Tenant shall comply with the Americans with Disabilities Act of 1990 ("**ADA**") and the regulations promulgated thereunder. Tenant hereby expressly assumes all responsibility for compliance with the ADA relating to the interior, non-structural portions of the Premises and Tenant's specific use of the Premises. Any alterations to the interior, non-structural portions of the Premises made by Tenant for the purpose of complying with the ADA or which otherwise require compliance with the ADA shall be done in accordance with the provisions of this Lease; provided, that the Landlord's consent to such alterations shall not constitute either Landlord's assumption, in whole or in part, of Tenant's responsibility for compliance with the ADA, or representation or confirmation by Landlord that such alterations comply with the provisions of the ADA.

Landlord shall be responsible for the costs and expenses arising from or relating to ADA compliance of the exterior of the building in which the Premises are located including, but not limited to, the parking areas, walks, signage and access to the Premises.

ARTICLE 14. SERVICES

14.1 Payment. Tenant shall be solely responsible for and shall promptly pay all charges for the use and consumption of sewer, gas, electricity, water, phone and all other utility services used within the Premises, including all connection fees and meter installation costs for said utility services.

14.2 Garbage Collection. Tenant shall obtain and pay for its own service for the collection and disposal of refuse and garbage.

14.3 Interruption of Services. Landlord shall not be liable to Tenant in damages or otherwise if the said utilities or services are interrupted or terminated because of necessary repairs, installations, improvements, problems outside the Building, or any cause beyond Landlord's reasonable control, and not directly or indirectly attributable to the negligence of or breach of this Lease by Landlord or its agents, employees or contractors, nor shall any such interruption or termination of utility service relieve Tenant of the performance of any of its obligations hereunder unless directly or indirectly attributable to the negligence of breach of this Lease by Landlord or its agents, employees or contractors.

14.4 Additional Utility Facilities. If any equipment installed by Tenant requires additional utility facilities the same shall be installed at Tenant's expense in compliance with all code requirements and plans and specifications, which must be approved in writing by Landlord.

14.5 Landlord's Responsibility. Landlord shall ensure that all utility connections, meters and services applicable to the Premises are installed prior to Tenant's occupancy of the Premises.

ARTICLE 15. PARKING AND ACCESS

Tenant shall be provided with the right to use parking areas and driveways, and means of ingress and egress to the Building, sufficient to satisfy governmental and ADA requirements. Tenant shall have the right to use all parking spaces located on the Premises along with any off-site parking pursuant to any mutual parking agreement affecting the Premises. Tenant may also install one "to-go" style parking spot with branded signage.

ARTICLE 16. DAMAGE TO PREMISES

16.1 Landlord's Repair Obligation. In the event that the Premises is damaged or destroyed by fire or other casualty, other than as a result of Tenant's negligence or eviction as described in Section 16.2, Landlord shall restore, replace or rebuild the Premises, at Landlord's sole cost and expense with all reasonable speed to the same condition as existed prior to the happening of the fire or other casualty. Notwithstanding the foregoing, Tenant shall be responsible for providing and installing all replacement furniture, fixtures, equipment and other personal property in the Premises as deemed necessary by Tenant in Tenant's discretion.

16.2 Tenant's Repair Obligation. In the event that the Premises are damaged or destroyed by fire or other casualty caused by Tenant's negligence or, if Tenant is evicted from the Premises by a public authority to preserve the public safety, this Lease shall not terminate, nor shall the liability of Tenant to pay rent cease or be reduced, but Tenant shall restore, replace or rebuild the Premises at Tenant's sole cost and expense with all reasonable speed to the same condition as existed prior to the happening of the fire, eviction or other casualty. In the event Tenant is required to so restore, replace or rebuild as aforesaid, Tenant shall be entitled to the proceeds of all casualty insurance (if any) payable by virtue of the event or events causing damage to the Premises whether Landlord or Tenant maintains the applicable casualty coverage.

Notwithstanding any provision in this Article 16, in the event the Premises are damaged or destroyed within 2 years prior to the end of the initial term of this Lease, or any extension thereof rendering the Premises unusable for the intended purpose, and same cannot be repaired or restored (in Tenant's reasonable opinion) within six (6) months of the date of such damage or destruction, Tenant shall have the right to terminate this Lease and all proceeds of insurance solely attributable to the Building shall be delivered to Landlord.

ARTICLE 17. INSURANCE

17.1 Casualty Insurance. During the entire term of this Lease, Tenant shall maintain the following insurance regarding the Premises and for the benefit of Landlord (collectively, the "**Insurance**"), and shall in all events name Landlord, and its Fee Mortgagee, if any, as an additional insured and/or loss payee, as applicable, as its respective interests may appear. Tenant shall, at the Tenant's sole cost and expense, maintain and keep in force and effect fire, extended coverage and such other casualty insurance as Landlord may reasonably specify, including but not limited to earthquake and flood, with a policy benefit at least equal to the full replacement value of all improvements located on the Premises (excluding footings and foundations). At Landlord's election, Landlord may instead obtain such insurance and require Tenant to reimburse Landlord for all premiums and out-of-pocket costs incurred by Landlord in relation thereto as "Additional Rent." Tenant shall maintain insurance on the Premises at an amount equal to 100% of its replacement value (excluding footings and foundations). Tenant shall purchase and maintain business interruption insurance to include coverage for a period of interruption of not less than 12 months. The policy shall provide that: (a) such insurance shall be primary coverage without reduction or right of offset or contribution on account of any insurance provided by Landlord to itself or its officers, officials or employees; (b) such insurance shall not be altered or cancelled without 30 days' written notice to Landlord; (c) such insurance shall name Landlord as an additional insured; (d) any Fee Mortgagee and Leasehold Mortgagee shall be named as: (i) a loss payee or mortgagee on Tenant's property damage insurance policy under a standard mortgagee clause; and (ii) an additional insured on Tenant's liability insurance policies. The insurance policies purchased by Tenant must be issued by a company authorized to conduct business in the State or by a company reasonably acceptable to the Landlord.

17.2 General Liability. In addition, Tenant shall maintain, at Tenant's sole cost and expense general public liability insurance against claims for personal injury, death or property damage occurring in, upon or about the Premises, with coverage of not less than \$1,000,000.00 in

respect to injury or death of one person, not less than \$2,000,000.00 in respect one any one accident, and not less than \$1,000,000.00 in respect to property damage. All such policies of insurance shall be issued in the name of Tenant with Landlord named as an additional insured for the mutual and joint benefit and protection of the parties, and certificates evidencing such policies of insurance shall be delivered to Landlord within 10 days of binding or renewal of such policies. Upon Landlord's request, copies of such policies shall be delivered to the Landlord. Said policies of Insurance shall provide that Landlord shall be given 30 days prior written notice prior to any modification or cancellation of said policy, or 10 days for nonpayment of premiums.

17.3 No Invalidation. Tenant agrees and covenants that it will not do or permit to be done in, to, or about the Premises any act or thing which will violate, suspend, invalidate or make inoperative any insurance pertaining to any buildings, other structures or improvements now located in or upon Premises or hereafter constructed and located thereon or therein; and, further, that Tenant will not permit any buildings, other structures or improvements at any time to be put, kept or maintained on the property in the condition that the same cannot be insured in the amount of the full insurable replacement value thereof (excluding footings and foundations).

17.4 Delivery of Insurance Certificates. Upon the commencement of this Lease and at each policy renewal date, Tenant shall furnish to Landlord, any Fee Mortgagee and any Leasehold Mortgagee insurance certificates or renewal certificates within 10 days of binding or renewal or, if requested by Landlord, Fee Mortgagee or Leasehold Mortgagee, certified copies of policies, evidencing all insurance required to be carried by Tenant in accordance with the Lease. Such certificates or policies shall name Landlord as an insured and shall name any Fee Mortgagee and Leasehold Mortgagee as mortgagee and loss payee, in accordance with the requirements contained in this Article 17. The insurance certificate or policies, as applicable, must document that the liability insurance coverage purchased by the Tenant includes contractual liability coverage to insure the indemnity agreement as stated.

17.5 Evidence of Policy Payments. Tenant shall within 10 days of payment furnish to Landlord duplicate receipts or satisfactory evidence of the payment of all premiums on any and all insurance required to be carried by Tenant in accordance with this Lease. The insurance carrier shall give Landlord, any Fee Mortgagee and all Leasehold Mortgagees 10 days' prior notice (with respect to nonpayment of premiums) of cancellation, modification or non-renewal.

17.6 Payments for Tenant by Landlord. If Tenant fails to procure the insurance required to be procured by Tenant under this Lease, or fails to pay any premium of insurance, Impositions, or any other sum in this Lease required to be paid by Tenant (other than Rent), Landlord may, after expiration of the applicable cure period, at Landlord's option, procure on behalf of Tenant any such insurance, and pay on behalf of Tenant any such payment or payments as may be necessary. Any sum(s) so paid or expended by Landlord on behalf of Tenant shall immediately be reimbursed and paid by Tenant to Landlord, as Additional Rent, within ten (7) days after demand by Landlord.

17.7 Landlord's Insurance. Landlord will throughout the Term, keep the Building and Premises insured in the types and amounts as is customary in the industry but not less than an amount equivalent to the full replacement value thereof and the rental value thereof during the period of repair or reconstruction against (i) loss of damage by fire; and (ii) such other risk or risks

of a similar or dissimilar nature as are now, or may in the future be, customarily covered with respect to buildings and improvements similar in construction, general location, use, occupancy and design to the Building and Premises, including, but without limiting the generality of the foregoing, windstorms, hail, explosion, vandalism, malicious mischief, civil commotion and such other coverage as may be deemed necessary by Landlord. Landlord will throughout the Term, maintain or cause to be maintained, for its benefit, the benefit of Tenant and the benefit of their respective mortgagees and managing agents, commercial general public liability insurance against claims for personal injury, death or property damage occurring upon, in or about the Premises and Building and such other insurance as Landlord deems reasonably necessary. Landlord shall maintain commercially reasonable deductibles on the insurance.

ARTICLE 18. INDEMNIFICATION

18.1 Indemnification of Landlord. Tenant shall defend, indemnify and hold Landlord harmless from and against any and all claims, demands, liabilities, and expenses, including reasonable attorneys' fees, arising from Tenant's use of the Premises and Building or from any act permitted, or any omission to act, in or about the Premises or the Building by Tenant or its agents, employees, contractors, or invitees or from any breach or default by Tenant of this Lease, except to the extent caused by Landlord's or its agents', employees', contractors' or invitees' negligence or intentional misconduct. In the event any action or proceeding shall be brought against Landlord by reason of any such claim, Tenant shall defend the same at Tenant's expense by counsel reasonably satisfactory to Landlord with Landlord having the right to approve any settlements.

18.2 Indemnification of Tenant. Landlord shall defend, indemnify and hold Tenant harmless from and against any and all claims, demands, liabilities and expenses, including reasonable attorneys' fees, to the extent arising from Landlord's operation of the Building, or from any act performed or act permitted or omission to act, in or about the Building by Landlord or its agents, employees, contractors, or invitees, or from any breach or default by Landlord of this Lease, except to the extent caused by Tenant's negligence or intentional misconduct. In the event any action or proceeding shall be brought against Tenant by reason of any such claim, Landlord shall defend the same at Landlord's expense by counsel reasonably satisfactory to Tenant.

ARTICLE 19. ASSIGNMENT, SUBLETTING AND OWNERSHIP

19.1 Tenant. Tenant may not transfer, assign or sublet its interest in this Lease without first obtaining Landlord's prior written consent, which shall not be unreasonably withheld or delayed, but which consent may be conditioned upon Tenant paying for Landlord reasonable costs, including reasonable attorneys' fees, in reviewing such assignment or sublease not to exceed \$2,500.00. Landlord's failure to consent shall not be deemed unreasonable if proposed assignee or sublessee (i) has not less than two years' experience operating a business of the type that the transferee proposes to operate at the Premises; or (ii) does not have a net worth equal to or exceeding Tenant's net worth at the time of the Effective Date of this Lease. Any assignment or subletting shall not release Tenant from its obligations and liabilities under this Lease. Notwithstanding the foregoing, Tenant shall have the right to assign this Lease or sublet the

Premises or any portion thereof to an Affiliate, Cheba Hut franchisee or other buyer, without Landlord's consent, provided that Tenant shall give Landlord prior written notice, which notice shall include the financials of such Affiliate, Cheba Hut franchisee or buyer, thereof and provided such Affiliate, Cheba Hut franchisee or buyer shall have financial strength greater than or equal to Tenant at the time this Lease is entered into by Tenant and Landlord. "**Affiliate**" shall mean any entity that Controls Tenant, any entity that Tenant Controls, or any entity under common Control with Tenant. "**Control**" shall mean more than 50% ownership or voting control.

19.2 **Landlord.** Landlord shall have the right to transfer, assign and convey, in whole or in part, any or all of the right, title and interest to the Building, provided, such transferee or assignee shall be bound by the terms, covenants and agreements herein contained, and shall expressly assume and agree to perform the covenants and agreements of Landlord herein contained, and Tenant's security deposit or prepaid amounts are transferred to such transferee or assignee.

ARTICLE 20. ACCESS TO PREMISES

Upon reasonable prior notice, of not less than one business day, Landlord or Landlord's agent shall have the right to enter the Premises during usual business hours, provided Landlord does not materially interfere with Tenant's operations to examine the same; to assist in promotion of the building and Premises of which it is a use of the Premises, to show the Premises to prospective purchasers or lessees; and to make such repairs, alterations, improvements or additions as Landlord may deem necessary or desirable, without the same constituting an eviction of Tenant in whole or in part, and the rent reserved shall in no wise abate, except as otherwise provided below. In the event of an emergency, and if Tenant shall not be personally present or permit an entry into the Premises, Landlord or Landlord's agents may forcibly enter the same without rendering Landlord or such agents liable therefor and without in any manner affecting the obligations and covenants of this Lease, except Landlord shall be responsible only for damages or injury caused by any unreasonable forcible entry or negligence. Nothing herein contained, however, shall be deemed or construed to impose upon Landlord any obligation, responsibility or liability whatever for the care, maintenance or repair of the Premises or the Building or any part thereof, except as otherwise herein specifically provided.

ARTICLE 21. DEFAULTS BY TENANT AND REMEDIES

21.1 **Events of Default.** The occurrence of any of the following shall constitute a material default and breach of this Lease by Tenant:

a. Any failure by Tenant to pay Rent when such is due, or to timely make any other payment required to be made by Tenant hereunder and such failure continues for five days following Tenant's receipt of written notice of such failure from Landlord. In addition, if Tenant fails to make any payment not made when due, then Tenant shall pay a late payment fee equal to 5% of the payment then due (not to exceed \$600.00), plus accruing interest on the amount of the late payment at the rate of 12% per annum.

b. A failure by Tenant to observe and perform any material provision of this Lease to be observed or performed by Tenant, other than a failure to pay Rent, where such failure continues

for 30 days after written notice thereof by Landlord to Tenant; provided, however, if cure thereof reasonably takes longer than 30 days, this period shall automatically be extended as long as Tenant commences the cure promptly, at Landlord's sole discretion, within said 30-day period and thereafter continues to diligently prosecute completion.

c. The making by Tenant of any general assignment for the benefit of creditors, the filing by or against Tenant of a petition to have Tenant adjudged a bankrupt, or a petition for reorganization or arrangement under any law relating to bankruptcy (unless, in the case of a petition filed against Tenant, the same is dismissed within 60 days, the appointment of a trustee or receiver to take possession that is not restored to Tenant within 30 days, or the attachment, execution or other judicial seizure that is not discharged within 30 days).

21.2 Remedies. In the event of any uncured default by Tenant, then Landlord shall be entitled to the following cumulative remedies, in addition to any other remedies available at law or in equity:

a. Landlord may terminate this Lease by giving written notice of termination to Tenant, in which event Tenant shall immediately surrender the Premises to Landlord. If Tenant fails to so surrender the Premises, then Landlord may, without prejudice to any other remedy it has, including possession of the Premises or arrearages in Rent or other damages, re-enter and take possession of the Premises and expel or remove Tenant and any other person occupying the Premises or any part thereof, in accordance with applicable law; or

b. Landlord may re-enter and take possession of the Premises without terminating this Lease and relet the Premises and apply the Rent received to the account of Tenant. If Landlord so re-enters and takes possession of the Premises as set forth above, Landlord agrees to use reasonable efforts to relet the Premises for a commercially reasonable rate at the time of such reletting. No reletting by Landlord shall be considered to be for Landlord's own account, unless Landlord has notified Tenant in writing that this Lease has been terminated. In addition, no such reletting shall be considered an acceptance of Tenant's surrender of the Premises unless Landlord so notifies Tenant in writing; or

c. Landlord may re-enter the Premises without terminating this Lease and without being liable for any damages, unless caused by the negligence or misconduct of Landlord, its agents, employees or contractors, and do whatever Tenant is obligated to do under this Lease. Tenant shall pay to Landlord, upon demand, the reasonable expenses paid by Landlord in satisfying Tenant's obligations under the terms of this Lease. Any sums so expended by Landlord shall bear interest at the rate of 18% per annum from the date expended until the date Landlord is repaid.

d. Enforcement of Lien. Landlord shall have the right, in addition to any other remedies, to take possession of, sell, or otherwise dispose the Tenant's Property in accordance with applicable law, with the proceeds first applied to the costs of the sale, then to any amounts owed by Tenant under this Lease and any remaining balance returned to Tenant.

21.3 Abandonment. If Landlord obtains possession of the Premises as a result of Tenant's abandonment of same or by a decree from a court of competent jurisdiction, this shall not

be construed as an election to terminate this Lease unless Landlord provides Tenant with a written notice of this election.

21.4 If Landlord shall be in default in performing any of the terms of this Lease, Tenant shall give Landlord written notice of such default, and if Landlord shall fail to cure such default within thirty (30) days after the receipt of such notice, or if the default is of such a character as to require more than thirty (30) days to cure, then if Landlord shall fail, within said thirty (30) day period, to commence and thereafter proceed diligently to cure such default, then and in either of such event, Tenant may (i) avail itself of any self-help remedy deemed necessary by Tenant, in its sole discretion, including curing such default on behalf of Landlord; and/or (ii) terminate the Lease. The remedy for the default shall be reasonable costs and expenses incurred by Tenant in curing Landlord's default..

ARTICLE 22. SURRENDER OF PREMISES

Tenant shall, upon the expiration of the Term granted herein, or any earlier termination of this Lease for any cause, surrender to Landlord the Premises, including, without limitation, all building apparatus and equipment then upon the Premises, and all alterations, improvements and other additions which may be made or installed by either party to, in, upon or about the Premises. Tenant may not remove its improvements to or permanent alterations of the Premises, but it may remove Tenant's Property, as defined in Article 10 above.

ARTICLE 23. EMINENT DOMAIN

23.1 Termination of Lease. In the event a substantial portion of the Building or parking shall be appropriated or taken under the power of eminent domain by any public or quasi-public authority, then at the election of Landlord or Tenant upon 10 days written notice, this Lease shall terminate and expire as of the date of such taking, and both Landlord and Tenant shall thereupon be released from any liability thereafter accruing hereunder. A "substantial portion of the Building" means 10% or more of the rentable square feet of the Building.

23.2 Election Not to Terminate. If the Lease is not terminated pursuant to Article 25.1 above, Tenant shall remain in that portion of the Premises, which shall not have been appropriated or taken, and all Rent and payment obligations of Tenant shall be adjusted on an equitable basis, taking into account the relative value of the portion taken as compared to the portion remaining. For the purpose of this Article 25.2, a voluntary sale or conveyance in lieu of condemnation, but under threat of condemnation shall be deemed an appropriation or taking under the power of eminent domain.

23.3 Landlord's Right to Compensation. All compensation awarded or paid for the total or partial taking of the Premises through the exercise of the power of eminent domain shall belong to Landlord without participation by Tenant and without any deduction therefrom for any present or future estate of Tenant. No claim of Tenant made pursuant to Article 25.4 below shall diminish or otherwise adversely affect Landlord's award.

23.4 Tenant's Right to Compensation. Nothing herein shall be deemed to affect Tenant's right to receive compensation from the entity exercising its power of eminent domain for damages to Tenant's Property, loss of goodwill and relocation expenses only.

ARTICLE 24. ATTORNEYS' FEES

In the event of any default under the terms of this Lease or any dispute regarding its terms and conditions or enforcement, the defaulting party agrees to reimburse the prevailing party for all expenses and costs, including reasonable attorneys' fees incurred in enforcing the terms hereof. Such reimbursement shall include all legal expenses incurred, whether enforcing is sought by suit or otherwise.

ARTICLE 25. NOTICES

Notices and demands required, or permitted, to be sent to those listed hereunder shall be sent by certified mail, return receipt requested, postage prepaid, or by Federal Express or other reputable overnight courier service and shall be deemed to have been given upon the date the same is postmarked, if sent by certified mail, or the day deposited with Federal Express or such other reputable overnight courier service:

Landlord:

RCB North 1, LLC
5284 S Commerce Drive, Suite C-274
Murray, Utah 84117

Tenant:

Frontier Daze LLC
400 N. College Ave.
Fort Collins, CO 80524
jimmy@chebahut.com
Attn: James Wedding

With additional copy to:
Cheba Hut Franchising, Inc.
400 N College Ave
Fort Collins, CO 80524
ATTN: Director of Real Estate

or at such other address requested in writing by either party upon thirty (30) days' notice to the other party.

ARTICLE 26. REMEDIES

All rights and remedies of Landlord and Tenant herein created or otherwise extending at law are cumulative, and the exercise of one or more rights or remedies may be exercised and enforced concurrently or consecutively and whenever and as often as deemed desirable.

ARTICLE 27. SUCCESSORS AND ASSIGNS

All covenants, promises, conditions, representations and agreements herein contained shall be binding upon, apply and inure to the parties hereto and their respective heirs, executors,

administrators, successors and assigns; it being understood and agreed, however, that the provisions of Article 20 are in nowise impaired by this Article 29.

ARTICLE 28. WAIVER

The failure of Landlord or Tenant to insist upon strict performance by the other of any of the covenants, conditions, and agreements of this Lease shall not be deemed a waiver of any subsequent breach or default by the other in any of the covenants, conditions and agreements of this Lease. No surrender of the Premises by Tenant shall be affected by Landlord's acceptance of Rent or by other means whatsoever unless the same is evidenced by Landlord's written acceptance of the surrender.

ARTICLE 29. HOLDING OVER

If Tenant or any party claiming under Tenant remains in possession of the Premises or any part thereof after any termination or expiration of this Lease, Landlord, in Landlord's sole discretion, may treat such holdover as an automatic renewal of this Lease for a four-week tenancy subject to all the terms and conditions provided herein, provided, however that, the Base Rent during the holdover shall be the then-current base rental multiplied by 150%.

ARTICLE 30. INTERPRETATION

The parties hereto agree that it is their intention hereby to create only the relationship of Landlord and Tenant, and no provision hereof, or act of either party hereunder, shall ever be construed as creating the relationship of principal and agent, or a partnership, or a joint venture or enterprise between the parties hereto.

ARTICLE 31. COVENANT OF TITLE AND QUIET ENJOYMENT

Landlord covenants that Tenant or any permitted assignee or sublessee of Tenant, upon the payment of the Rent and performance of the covenants hereunder, shall and may peaceably and quietly have, hold and enjoy the Premises and improvements thereon during the Term or any renewal or extension thereof. Additionally, Landlord shall take no action that will interfere with Tenant's intended usage of the Premises.

ARTICLE 32. RECORDING

Tenant shall not record this Lease, but may record a memorandum of this Lease in a form acceptable to Landlord with the Laramie County Recorder. Any recording costs associated with the memorandum shall be borne by Tenant.

ARTICLE 33. FORCE MAJEURE AND PERMITTED DELAYS

In the event that either party hereto shall be delayed or hindered in or prevented from the performance required hereunder by reason of failure of power, riots, insurrection, war, pandemic, acts of God, government mandate or other reason of like nature not the fault of the party delayed in

performing work or doing acts (hereinafter, “*Permitted Delay*” or “*Permitted Delays*”), such party shall be excused for the period of time equivalent to the delay caused by such Permitted Delay. Notwithstanding the foregoing, any extension of time for a Permitted Delay shall be conditioned upon the party seeking an extension of time delivering written notice of such Permitted Delay to the other party, and the maximum period of time which Landlord may delay any act or performance of work due to a Permitted Delay shall be 60 days. Notwithstanding the preceding, nothing in this Article shall excuse any obligations of Tenant involving the payment of money.

ARTICLE 34. LIMITATIONS ON LANDLORD’S LIABILITY

Notwithstanding anything to the contrary contained in this Lease, in the event of any default or breach by Landlord with respect to any of the terms, covenants and conditions of this Lease to be observed, honored or performed by Landlord, Tenant shall look solely to the estate and property of Landlord in the land and building(s) owned by Landlord comprising the Premises together with the profits and proceeds thereof for the collection of any judgment (or any other judicial procedures requiring the payment of money by Landlord) and no other property or assets of Landlord shall be subject to levy, execution, or other procedures for satisfaction of Tenant’s remedies.

ARTICLE 35. SEVERABILITY

Any provision of this Lease which shall prove to be invalid, void or illegal shall in no way affect, impair or invalidate any other provisions hereof and such other provisions shall remain in full force and effect.

ARTICLE 36. GOVERNING LAW AND VENUE

This Lease shall be governed by the laws of the State of Wyoming. Tenant and Landlord agree that any claims related to this Lease shall be filed in the State courts located in Laramie County, Wyoming.

ARTICLE 37. BROKERS

Tenant’s brokers is Rob Graham and Bailey Wheeler of Coldwell Banker Commercial TPE (“Tenant’s Broker”). Landlord agrees to pay as commission 2.5% on the first five years of the Lease Term. No commission shall be paid on the renewal. The commission will be payable in full upon commencement of Tenant’s payment of Rent to Landlord, which as defined above is the sixtieth (60th) day following Lease Execution and Delivery of Premise

ARTICLE 38. TENANT’S CONDUCT OF BUSINESS

Tenant agrees, at such time it is operating its business in the Premises, to conduct its business in a first-class manner consistent with reputable business standards and practices.

ARTICLE 39. OBLIGATIONS THAT SURVIVE EXPIRATION OF THIS LEASE

In addition to those obligations specifically referred to in this Lease, as surviving the

expiration or termination of this Lease, the following obligations shall survive the expiration or termination of this Lease:

- (45) any obligation herein permitted to be performed after the end of the termination of this Lease; (b) any obligation not reasonably susceptible of performance prior to the termination of this Lease; (c) any obligation arising under this Agreement to indemnify, defend or hold any person harmless, and (d) any obligation to be performed pursuant hereto at or before the end of the Term, which is not so performed.

ARTICLE 40. RULES AND REGULATIONS; DECLARATION

Tenant shall faithfully observe and comply with any Declaration or CC&Rs filed with the County Recorder relating to the Premises. The rules and regulations shall be binding upon the Tenant upon delivery of a copy of them to Tenant. Landlord shall not be responsible to Tenant for the non-performance of the above by any other tenants or occupants of the Building.

ARTICLE 41. ESTOPPEL CERTIFICATE

Landlord or Tenant shall, within ten (10) days after request by the other party, (i) execute and deliver to a written declaration (to the extent true) in substantially the same form as that attached hereto as **Exhibit E**: (a) ratifying this Lease; (b) expressing the commencement and termination dates thereof and whether any renewal options have been exercised; (c) certifying that this Lease is in full force and effect and has not been assigned, modified, supplemented or amended (except by such writings as shall be stated); (d) that all conditions under this Lease to be performed by the party have been satisfied; (e) that there are no known defenses or offsets against the enforcement of this Lease by Landlord, or stating those claimed by Tenant; (f) the amount of advance rental, if any (or none if such is the case) paid by Tenant; (g) the date to which rental has been paid; (h) the amount of security deposited with Landlord, if any; and (i) such other reasonable factual statements as shall be requested. Such declaration shall be executed and delivered from time to time as may be requested by Landlord or Tenant.

ARTICLE 42. ENTIRE AGREEMENT

This Lease contains all of the agreements of the parties hereto with respect to matters covered or mentioned in this Lease and no prior agreement, letters, representations, warranties, promises, or understandings pertaining to any such matters shall be effective for any such purpose. This Lease may be amended or added to only by an agreement in writing signed by the parties hereto or their respective successors in interest.

ARTICLE 43. ACCORD AND SATISFACTION

No payment by Tenant or receipt by Landlord of a lesser amount than the required Rent herein stipulated shall be deemed to be other than on account of the earliest stipulated rent nor shall any endorsement or statement on any check or any letter accompanying any check or payment as Rent be deemed an accord and satisfaction; and Landlord may accept such check or payment without prejudice to Landlord's right to recover the balance of any Rent or to pursue any other

remedy in this Lease provided.

ARTICLE 44. RELIANCE ON CORPORATE GUARANTEE

44.1. Acknowledgment of Guarantee. Tenant acknowledges and agrees that the Landlord has entered into this Lease Agreement in reliance upon the Corporate Guarantee provided by Cheba Hut Franchising, Inc. marked as Exhibit G ("the Guarantee"). The Guarantee forms an integral part of this Lease Agreement and is intended to secure the performance of the Tenant's obligations under this Lease.

44.2. Material Inducement. The Tenant further acknowledges that the Guarantee constitutes a material inducement for the Landlord's execution of this Lease, and the Landlord would not have entered into this Lease in the absence of such Guarantee.

44.3. Representations of Tenant and Guarantor. The Tenant represents and warrants that the Guarantee remains in full force and effect and that the Guarantor has the financial capacity to fulfill its obligations under the Guarantee.

44.4. Default and Enforcement. In the event of any default by the Tenant under this Lease, the Landlord shall have the right to enforce the Guarantee in accordance with its terms, without the need to first exhaust remedies against the Tenant or pursue other security or recourse available under this Lease.

44.5. Survival of Obligations. The obligations of the Guarantor under the Guarantee, and the Landlord's reliance on the same, shall survive any termination of this Lease and shall remain in effect until all obligations of the Tenant under this Lease have been fully satisfied.

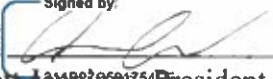
ARTICLE 45. SECURITY DEPOSIT

Tenant, contemporaneously with the execution of this Lease, has deposited with Landlord \$9,200.00 as a "***Security Deposit***," the receipt of which is hereby acknowledged by Landlord. Landlord shall hold the Security Deposit without liability for interest, as security for the faithful performance by Tenant of all the terms, covenants and conditions of this Lease. Should Tenant fail to keep and perform any of the terms, covenants and conditions of this Lease, Landlord may apply any portion of the Security Deposit necessary to compensate Landlord for loss or damage sustained by Landlord due to such breach, without prejudice to its further rights and remedies. Tenant shall, following Landlord's application of the Security Deposit as set forth herein and upon the written demand of Landlord, restore the Security Deposit to the original sum deposited. Provided Tenant complies with all the terms, covenants and conditions of this Lease, the Security Deposit shall be returned in full to Tenant at the end of the Term or upon its earlier termination.

IN WITNESS WHEREOF, the parties hereto have executed this Lease for all purposes as of the date and year first written above.

TENANT:

Frontier Daze LLC,
a Wyoming limited liability company

Signed by: 
By: _____
Scott Jennings, President

LANDLORD:

RCB North 1, LLC,
a Utah limited liability company

DocuSigned by: 
By: _____
RCB Legacy, LLC, a Utah limited liability company its Manager

DocuSigned by: 
By: _____
Name: Jeffrey S. Bennion
Title: Manager

EXHIBIT-A - DESCRIPTION OF PREMISES

The following real property located in Cheyenne, Wyoming:

Lot 8, Block 1, Pershing Marketplace 4th Filing, Cheyenne, Wyoming 82001. (Street address is approximately 3838 Atkin Street, Cheyenne, Wyoming 82001)

EXHIBIT-B - FLOOR PLAN

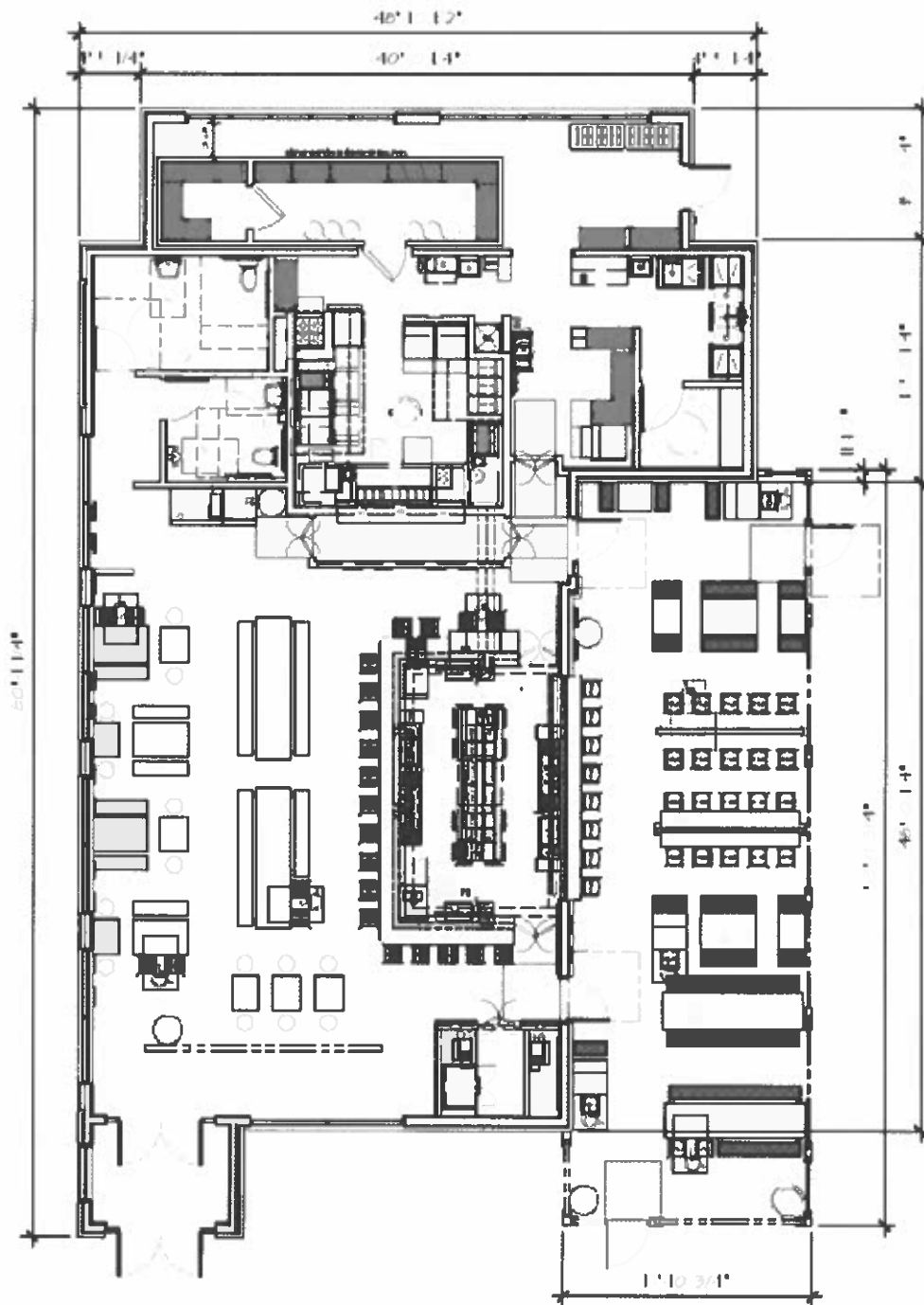


EXHIBIT-C - RENT COMMENCEMENT CERTIFICATE

LANDLORD: RCB North 1, LLC

TENANT: Frontier Daze LLC

This Lease Commencement Certificate is made by Landlord and Tenant pursuant to that certain Lease (the "Lease") entered into as of 12/20/2024, for the premises known as Lot 8, Block 1, Pershing Marketplace 4th Filing, Cheyenne, Wyoming (the "Premises"). This constitutes a supplementary addendum to the Lease as contemplated by Article 3.2 of the Lease. The lease has a commencement date, a cessation of the reduced rent period, and a commencement of percentage rent date, as clarified in this certificate.

1. **Lease Commencement Date.** Landlord and Tenant acknowledge and agree that the Lease Commencement Date is 12/20/2024, and the Expiration Date is February 28, 2030. Rent as contemplated by the Lease begins accruing to Landlord's benefit as of the Rent Commencement Date which is: February 18, 2025.

2. **Base Rent.** Landlord and Tenant acknowledge and agree that the monthly Base Rent during the Term of the Lease is as follows, commencing on April 1 of each year:

Lease Year	Base Rent
1	\$9,200.00 monthly
2	\$9,200.00 monthly
3	\$9,200.00 monthly
4	\$9,200.00 monthly
5	\$9,200.00 monthly

3. **Termination of Rent Reduction Period.** Tenant files this certificate to confirm the date of cessation of the rent reduction period, which, per the terms set forth in paragraph 3.2, this period shall be sixty days from the signing of this lease. Sixty days from the signing of this lease is February 17, 2025. The date of the termination of the rent reduction period is March 20, 2025, or the ninetieth day from the signing of this lease.

4. **Commencement of Percentage Rent Period.** Intentionally deleted.

5. **Acceptance of Premises.** Tenant has inspected and examined the Premises, and Tenant finds the Premises acceptable and satisfactory in all respects in good condition after outdoor building maintenance, cleaning and working order of all electrical and plumbing fixtures to be in good and working order. All of the work to be completed by Landlord, as contemplated by the Lease, has been fully completed and fulfilled.

6. **Incorporation in Lease.** This Certificate is incorporated into the Lease and forms a supplementary and integral part thereof. This Certificate shall be construed and interpreted in

accordance with all other terms and provisions of the Lease for all purposes.

7. Renewal rental amount. The amount of rent in any renewal period will never be less than the previous period's rental amount but will not exceed ten percent (10%) of last charged base rent.

"Landlord"

RCB North 1, LLC,
a Utah limited liability company

DocuSigned by:
By: 
RCB Legacy, LLC, a Utah limited liability company its Manager

DocuSigned by:
By: 
Name: Jeffrey S. Bennion
Title: Manager

"Tenant"

Frontier Daze LLC
a Wyoming limited liability company

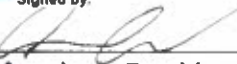
Signed by:
By: 
Scott Jennings, President

EXHIBIT-D - IMPROVEMENTS

Lot 8 (in red)

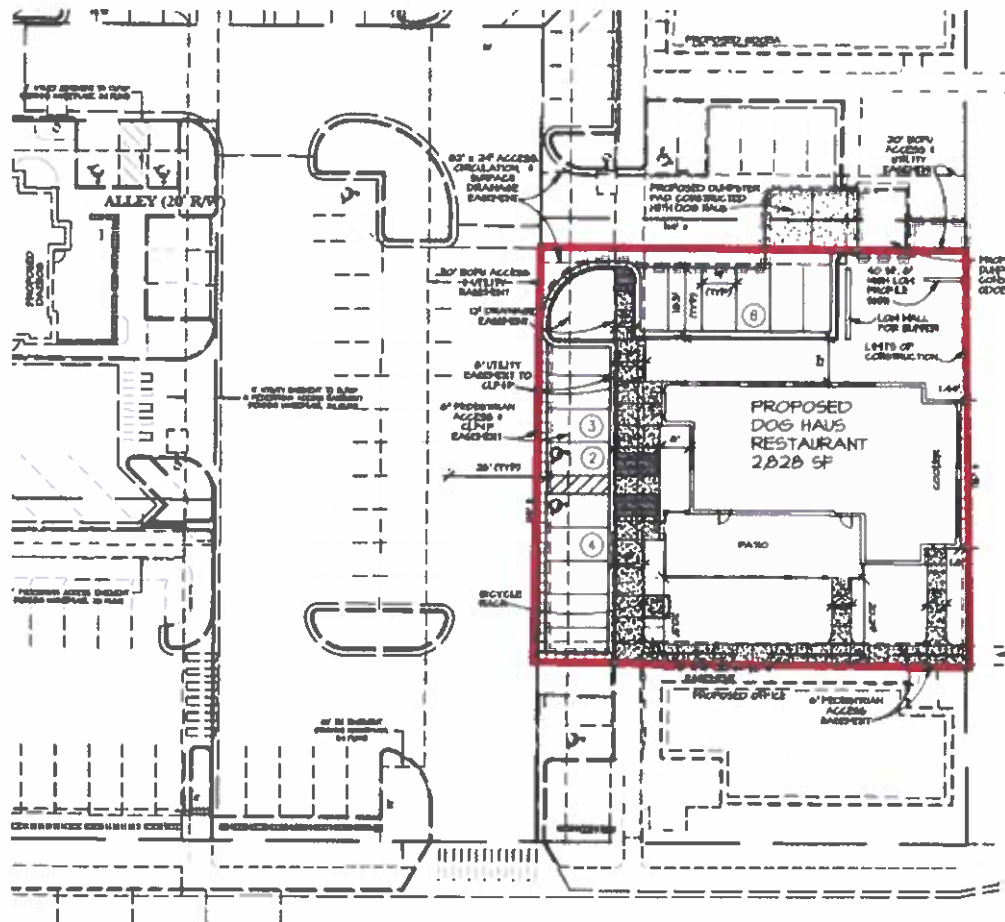


EXHIBIT E – ESTOPPEL CERTIFICATE

TO: _____

RE: Restaurant Lease Agreement dated 12/20/2024, 2025, by and between RCB North 1, LLC, Landlord, Frontier Daze LLC, as Tenant, on the Premises (as defined in the Lease).

The undersigned tenant (the “***Tenant***”) certifies and represents unto the addressee hereof (hereinafter referred to as the “***Purchaser***” or “***Lender***”), its attorneys and representatives with respect to the above-described lease, a true and correct copy of which is attached as **Exhibit A** hereto (the “***Lease***”) as follows:

1. All space covered by the Lease has been furnished to the satisfaction of Tenant, all conditions required under the Lease have been met, and there is no known default by Landlord or Tenant and Tenant has accepted and taken possession of the Premises covered by the Lease.

2. The Lease is for a total term of five (5) Lease Years commencing February 19, 20²⁵, has not been modified, altered or amended in any respect and contains the entire agreement between Landlord and Tenant, except as follows: _____ (list amendments and modifications other than those, if any, attached to and forming a part of the attached Lease as well as any verbal agreements; or write “None”).

3. As of the date hereof, the Annual Base Rent under the Lease is \$9,200 for each Lease Month.

4. No Rent has been paid by Tenant in advance under the Lease except for \$_____.00 which amount represents rent for the period beginning _____, 20__ and ending _____, 20____ and Tenant has no charge or claim of offset under said Lease or otherwise, against rents or other amounts due or to become due thereunder. No “discounts,” “free rent,” or “discounted rents” have been agreed to or are in effect except for _____.

5. Tenant has no claim against Landlord for any deposit or prepaid rent except as provided in Paragraphs 4 and 5 above.

6. The Landlord has satisfied all commitments, arrangements or understandings made to induce Tenant to enter into the Lease, and to Tenant’s knowledge, Landlord is not in any respect in default in the performance of the terms and provisions of the Lease, nor to Tenant’s knowledge, is there now any fact or condition which, with notice or lapse of time or both, would become such a default.

7. To Tenant’s knowledge, Tenant is not in any respect in default under the terms and provisions of the Lease (nor is there now any fact or condition which, with notice or lapse of time or both, would become such a default) and has not assigned, transferred or hypothecated its interest under the Lease, except as follows: _____.

8. Except as expressly provided in the Lease or in any amendment or supplement to the Lease, Tenant:

(i) does not have any option or preferential right to purchase all or any part of the Premises or all or any part of the building or premises of which the Premises are a part, and

(ii) does not have any right, title, or interest with respect to the Premises other than as Tenant under the Lease.

9. There are no understandings, contracts, agreements, subleases, assignments, or commitments of any kind whatsoever with respect to the Lease of the Premises covered thereby except as expressly provided in the Lease or in any amendment or supplement to the Lease set forth in Paragraph 2 above, copies of which are attached hereto.

10. The Lease is in full force and effect and Tenant has no known defenses, setoffs, or counterclaims against Landlord arising out of the Lease or in any way relating thereto or arising out of any other transaction between Tenant and Landlord.

11. The Tenant has not received any notice, directly or indirectly, of a prior assignment, hypothecation or pledge by Landlord of the rents or the Lease to a person or entity.

12. The current address to which all notices to Tenant, as required under the Lease, should is: Frontier Daze LLC

13. Addressee's rights hereunder shall inure to its successors and assigns.

14. Tenant acknowledges that Addressee is acquiring ownership of the building in which the Premises are located. Tenant agrees that upon Addressee acquiring ownership, Tenant will attorn and does attorn and agrees to recognize and does recognize Addressee as Landlord on the condition that Addressee agrees to recognize the Lease referred to in this document as long as Tenant is not in default thereunder.

15. Tenant makes this certificate with the understanding that the Addressee is contemplating acquiring the Premises and that if Addressee acquires the Premises, it will do so in material reliance on this certificate and Tenant agrees that the certifications and representations made herein shall survive such acquisition.

Notwithstanding anything contained in this Estoppel Certificate to the contrary, or any applicable law, provided such person has authority to sign for and bind Tenant, the person or persons executing this agreement in behalf of Tenant shall incur no personal liability with respect to Tenant's obligations or performance under the Agreement.

Executed on the ___ day of _____, 20___.

TENANT:

Frontier Daze LLC, a Wyoming limited liability company

EXHIBIT-F - PROPERTY OF LANDLORD

The following items will be provided by the Landlord to the Tenant upon Delivery of the space.

All below permanent fixtures (“***Permanent Fixtures***”) will be owned by the Landlord, maintained by the Tenant and left in the Premises at the time of Lease Expiration.

Permanent Fixtures (i.e. non-removable items that would not be considered Tenant FF&E if provided by the Tenant):

- Glycol Chiller
- Walk In Cooler
- Walk In Freezer
- Attached or installed into walls shelving
- Installed Sinks (even if moved by Tenant during construction, including in Bar area)
- Fixed Patio Tables and Benches. Tops of tables and benches/seating on patio will be removed by the Landlord.
- Exit Signs
- Bar tap system (even if changed, moved, updated, increased by Tenant).

All below Furniture and Fixtures (“***Movable Property***”) will become owned by the Tenant, maintained, repaired and replaced during the term of the Lease by the Tenant, at the Tenant’s sole cost and expense. The transfer of ownership of these above items will happen at Delivery of Premises. Any documentation related to the ownership of the items will be provided to Tenant by Landlord (such as account information for Security system, or Toast, if known).

Furniture and Fixtures:

- Keg stackers
- TVs (quantity: 18) & wall mounts
- Employee Lockers
- Black Metal Liquor cabinets
- Audio Equipment
- Security Cameras, Security Sensors
- Toast (POS System)
- Toast (Tablet)
- Fire Extinguishers
- Glassware
- Wire Security Cage
- NSF Green Epoxy Wire Shelving
- Chrome Wire Shelving
- Miscellaneous stainless-steel worktables
- Bar equipment includes all moveable equipment such as coolers, glassware, wire shelving and worktables, etc.

All other items in the Premise will be removed by Landlord at Landlord’s sole cost and expense prior to delivery of Premise, but no later than 10 days after Delivery of Premise to the Tenant. This includes: all

branded signage from former tenant, Coca-Cola fountain machine, bib rack, compressor, and other related parts, all dining room tables, chairs, barstools, and benches, the existing Hood system in the kitchen, all existing kitchen equipment (fryers, ovens, stoves, etc.) other than the items listed above under "Permanent Fixtures."

Any Movable Property that remains on the Premises for more than 10 days following delivery of the Premises to Tenant will be deemed abandoned by Landlord and Tenant may use or sell such abandoned Movable Property in Tenant's discretion and for Tenant's own account.

EXHIBIT-G - CORPORATE GUARANTEE

This Corporate Guarantee is made and entered into on 12/20/2024 by CHEBA HUT, INC. LLC, a Wyoming limited liability company with its principal office located at ("Guarantor"), in favor of RCB NORTH, LLC, a Wyoming limited liability corporation with its principal office located at 5284 Commerce Dr. Suite, C-274, Murray, UT ("Landlord").

RECITALS

WHEREAS, Frontier Daze LLC ("Tenant") has entered into a Lease Agreement dated 12/20/2024 (the "Lease") with the Landlord for the premises located at Lot 8, Block 1, Pershing Marketplace, 4th Filing (North College Drive, Cheyenne, Wyoming) (the "Premises"); and

WHEREAS, the Guarantor has a vested interest in ensuring the performance of the obligations under the Lease by the Tenant;

NOW, THEREFORE, in consideration of the foregoing and other valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Guarantor agrees as follows:

1. GUARANTEE

The Guarantor unconditionally and irrevocably guarantees to the Landlord the timely payment of all rent and other monetary obligations and the full and faithful performance of all other terms, covenants, and conditions contained in the Lease by the Tenant.

2. SCOPE OF GUARANTEE

This Guarantee includes, but is not limited to:

- (a) Payment of all rents, additional rents, late fees, penalties, and other charges due under the Lease.
- (b) The costs of any damages, repairs, or other liabilities arising from the Tenant's failure to perform under the Lease.
- (c) Any legal fees or expenses incurred by the Landlord in enforcing this Guarantee or the Lease.
- (d) Guarantor acknowledges that Landlord is not required to first exhaust remedies against Tenant or pursue other security or recourse under the Lease.

3. CONTINUING GUARANTEE

This Guarantee is a continuing, absolute, and unconditional guarantee and shall remain in full force and effect throughout the term of the Lease, including any extensions, renewals, or modifications thereof.

4. CONFESSION OF JUDGMENT

Guarantor hereby irrevocably authorized and empowers Landlord, to appear in the 1st Judicial District Court for Laramie County, Wyoming, after all, or any part, of the obligations evidenced

by this instrument have become due, and in each case to waive the issuance of service of process, to file and a complaint and present to the Court this instrument or a copy thereof and, in Landlord's discretion, any other writing evidencing the obligation(s) in question, to admit the due date and the non-payment of this instrument, to Confess Judgment against Guarantor in favor of Landlord, for the full amount of any and all of the liabilities then appearing due, together with interest and costs of suit, and to release all errors and waive all rights of appeal and any stay of execution of the judgment.

5. WAIVER OF NOTICE AND DEFENSES

- (a) The Guarantor waives any requirement that the Landlord first seek to recover from the Tenant or pursue other remedies before proceeding against the Guarantor.
(b) The Guarantor waives notice of any amendments, modifications, or extensions of the Lease.

6. ASSIGNMENT

This Guarantee shall inure to the benefit of and be binding upon the successors and assigns of the Landlord and the Guarantor.

7. GOVERNING LAW

This Guarantee shall be governed by and construed in accordance with the laws of the State of Wyoming.

8. ENTIRE AGREEMENT

This document constitutes the entire agreement between the parties regarding the subject matter hereof and supersedes any prior agreements or understandings.

9. SEVERABILITY

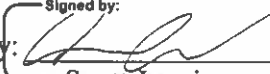
If any provision of this Guarantee is found to be invalid or unenforceable, the remaining provisions shall remain in full force and effect.

IN WITNESS WHEREOF,

The Guarantor has executed this Corporate Guarantee as of the date first above written.

Guarantor:

Cheba Hut, Inc.

Signed by:
By: 
Name: Scott Jennings
Title: President
Date:

① T.I. LAYOUT
1/4" = 1'-0"

STATE OF WYOMING
Office of the Secretary of State

I, CHUCK GRAY, Secretary of State of the State of Wyoming, do hereby certify that according to the records of this office,

Frontier Daze LLC
is a
Limited Liability Company

formed or qualified under the laws of Wyoming did on **November 21, 2024**, comply with all applicable requirements of this office. Its period of duration is Perpetual. This entity has been assigned entity identification number **2024-001557889**.

This entity is in existence and in good standing in this office and has filed all annual reports and paid all annual license taxes to date, or is not yet required to file such annual reports; and has not filed Articles of Dissolution.

I have affixed hereto the Great Seal of the State of Wyoming and duly generated, executed, authenticated, issued, delivered and communicated this official certificate at Cheyenne, Wyoming on this 24th day of February, 2025 at 4:15 PM. This certificate is assigned ID Number 082218425.



A handwritten signature in cursive script that reads 'Chuck Gray'.

Secretary of State

Notice: A certificate issued electronically from the Wyoming Secretary of State's web site is immediately valid and effective. The validity of a certificate may be established by viewing the Certificate Confirmation screen of the Secretary of State's website <https://wyobiz.wyo.gov> and following the instructions displayed under Validate Certificate.



FOOD SERVICE PLAN REVIEW WORK SHEET

ESTABLISHMENT NAME: Cheba Hut "Toasted" Subs

ESTABLISHMENT ADDRESS: 3838 Atkin St, Cheyenne WY 82001

ESTABLISHMENT PHONE NUMBER: TBD

FAX NUMBER: TBD

EMAIL ADDRESS: cheyenne-pershing@chebahut.com

CONTACT PERSON: Rocky Gupta (construction), Brandy King (operations)

OWNER NAME: Frontier Daze LLC

OWNER ADDRESS: 406 N College Ave Fort Collins CO 80524

OWNER PHONE NUMBER: (312) 315-5028

NOTE: Plans must be submitted to this office 30 days prior to construction or opening. This plan review will be good for 12 months past the date of review. After the expiration date, a new plan review and the appropriate fee will need to be resubmitted.

The following **MUST** be submitted with this questionnaire: *(incomplete plans will NOT be accepted)*

1. Hard copy of floor plan showing layout of equipment and mechanical layout.
2. Complete menu.
3. SOP outlining cooling and reheating procedures for any PHF/TCS foods.
4. Specification sheet of equipment (including shelving) showing NSF or equivalent approvals.
5. Plan review fee. *(See fee schedule attached for applicable amount)*

1. Will this establishment be: ☐ Temporary or ☒ Permanent
☐ Mobile or ☒ Stationary

2. Do your managers or employees have food safety training? If yes, please list type of training below.
Yes, Servsafe Manager. Food handlers card required for all employees.
3. What is the seating capacity of your facility? 61 inside + 72 on patio
4. Will this establishment do any catering outside the establishment? No
5. Does your establishment have a HACCP plan? ☐ Yes ☒ No
a) If yes please include 1 copy of HACCP plan and logs

DISHWASHING

1. What is the size of the largest piece of equipment (including pans, pots, etc)? 26"L 18"W 15"D
2. What size is each compartment of the three-compartment sink? 24"L 18"W 14"D
3. Does the three-compartment sink have integral drain boards? ☒ Yes ☐ No

4. Will this establishment have a dishwasher? X YES NO
 - a) If yes, will it have an indirect drain? X YES NO
 - b) Will the dishwasher be a: High temp sanitizing machine or a X Chemical sanitizing machine
 - (1) If high temp is checked will a hood be provided to vent steam out of the building? NA
 - c) Will any of the sinks or dishwashers have a pre-wash spray hose? X Yes No
 - (1) If yes, where will they be located? Backsplash mounted at 3 comp sink
 - (2) Will the spray hoses be provided with back flow prevention? X Yes No
4. Will the mop sink be provided with back flow prevention? X Yes No
5. Are Facilities provided for hanging wet mops? X Yes No If yes, Where Wall hooks at mop sink

WATER AND SEWER SUPPLY

1. Will water supply be from X CITY COMMUNITY WATER or PRIVATE WELL
2. Will Sewage be disposed of by: X CITY or SEPTIC SYSTEM
3. How many hot water heaters will be provided? 2
 - a) What will be the size of the water heaters? 6 gallons + 2 Tankless
4. What size will the outside grease trap be? 2000 gallons
 - a) Where will the outside grease trap be located? In landscaped area north of building
5. Where will coolers and freezers drain? Floor drain outside of cooler
6. How many restrooms will be provided? 2
 - a) Will Restrooms have self-closing doors? X Yes No

SHELVING AND STORAGE

1. How many, and what type of shelving will be used for coolers? 5 epoxy coated NSF wire shelving units, 1 keg rack
2. How many, and what type of shelving will be used for freezers? 1 epoxy coated NSF wire shelving units, 1 dunnage rack
3. How many and what type of shelving will be used for dry storage? 3 NSF wire shelving units
4. Where will chemicals be stored? Bottom shelf of wire shelves in back storage room
 - a) Will everything be stored at least 6" off the floor? X Yes No
5. Will each refrigerator and freezer have thermometers? X Yes No

VENTILATION AND FIRE SUPPRESSION

1. Is any frying going to be done in this establishment? Yes X No
2. Are Ventilation hoods/ filters provided in kitchen? X Yes No
 - a) If yes, where, and how many? 2 Cooking area Dishwashing area
 - b) Is Fire suppression provided on hoods? Yes X No Type 2 hoods
3. Do restrooms have vent fans venting to the out side? X Yes No

OUTSIDE OPENINGS

1. Do all exterior doors open outward? X Yes No
2. Are air curtains provided on any exterior doors? Yes X No Air curtains at bar overhead door and kitchen exterior door
3. Are screen doors provided on any doors? Yes X No
4. Are screens provided on any windows that open? Yes X No

LIGHTING

1. Is adequate lighting provided in all areas? X Yes No
2. Are all lights shielded in food prep, storage, and serving areas (including coolers & freezers)? X Yes No
3. Are all lights that are not shielded provided with shatterproof bulbs? X Yes No

TRASH AREA

1. How many dumpsters with lids will be provided? 1
2. Will a grease barrel be provided? No
3. Will a dumpster pad and enclosure be provided for trash area? X Yes No

FOOD PROTECTION AND PREPERATION

1. Will any buffets, salad bars, or food bars be used in this establishment? Yes X No
2. Will sneeze guards be provided? X Yes No
3. Will hard ice cream be served? Yes X No
 - a) Will dipper wells be provided? Yes X No
4. How will hot foods be cooled?

Hot foods are transferred to new clean pans with lids, labeled with original prep labels and a use-first sticker, left to cool on a counter to reach 70 degrees within 2 hours and then placed in the walk-in cooler to cool to 40 degrees within 4 hours. If the product does not reach 70 degrees within two hours, the product will be split into smaller batches in extra pans or an ice wand will be used in liquids.

Satellite Kitchens:

- Senior Citizens Centers
- Schools

SPECIALTY / OTHER: \$190.00**Specialty Establishments:**

- Operations that offers a limited single item menu such as ice cream, snow cones or cookies.
 - Atlas Theater
 - Baskin Robbins
 - Specialty Mobile Food Truck
 - Lanny's Homemade Ice Cream
 - Yeehaw Ice
 - Weenie Wrangler

Retail Specialty Shops:

- Operations that offer non-potentially hazardous items intended for off-premise consumption.
 - Eileen's Colossal Cookies

Seasonal Establishments:

- Operations that are open seasonally.
 - Pioneer Park Concession Stand
 - Powers Field

Continental Breakfasts:

- Operations that offer limited menus for **breakfast only**.
 - Comfort Inn
 - Fairfield Inn

REMODEL / MISCELLANEOUS: \$125.00**Non-licensed or courtesy plan reviews:**

- Operations that offer prepackaged and prepared food with a simple menu.
 - Archer Fairgrounds Event Center
 - Storey Gym

Remodels & Additions:

- Operations that want to alter and/or add on to a structure.

Batch #	000029
Trans ID	00000000162
Order ID	1739563761085
Receipt #	Cheba Hut Plan Review
Trans Type	Purchase
Date/Time	2025-02-14 13:10:18
Card Type	Visa
Card Number	XXXXXXXXXXXX3844
Entry Method	MANUAL
Approval Code	207285
Total Amount	USD\$369.00

Approved - Thank You

X _____
Cardholder Signature

Buyer agrees to pay total amount above
according to cardholder's agreement with
issuer.

"BEST BREAD IN THE BUSINESS!"



GARLIC HERB • WHITE • WHEAT

Our proprietary Parisian bread is hand-rolled, hand-scored & baked by a bakery that has been in the business for over 50 years.

SUB SIZES { **4" NUG**
8" PINNER
12" BLUNT
OR ANY SUB AS A SALAD

HOMEGROWN SAUCES



Signature Ranch	230	Teriyaki	70	Honey Sriracha	100
Honey Mustard	250	Horseshoe	230	OG Cream Cheese	220
Jamaican Red	70	House Dressing	340	Jalapeno	
Hot Sauce		Greek Dressing	370	Cream Cheese	170
Chipotle Mayo	330	Handcrafted		OG Hummus	140
BBQ	90	Marinara	25	Jalapeno	
Dijonnaise	290			(Cilantro) Hummus	130

*House Dressing: Italian Vinaigrette

*Cheba Shake: Burneser, organic and proprietary Cheba, Spice Blend

*CALORIE INFO IS BASED ON GARLIC HERB BREAD.
LEARN MORE AT CHEBAHUT.COM/NUTRITION-INFO

CHICKEN AND TURKEY

JAMAICAN RED (Buffalo Chicken) 400/730/1190/470

Grilled chicken breast, hot sauce, jalapeno, green bell pepper, black olive, cheddar, lettuce, tomato, onion, pickle, Shake & House dressing

WHITE WIDOW (Chicken, Bacon & Ranch) 490/980/1470/660

Grilled chicken breast, bacon, ranch, shrooms, provolone, lettuce, tomato, onion, pickle, Shake & House dressing

THAI STICK (Teriyaki Chicken) 370/740/1100/420

Grilled chicken breast, teriyaki, green bell pepper, pineapple, pepper jack, lettuce, tomato, onion, pickle, Shake & House dressing

PANAMA RED (Chicken Marinara) 440/870/1310/550

Grilled chicken breast, marinara, double provolone & Shake

ACQUARO GOLD (BBQ Chicken) 450/890/1340/580

Grilled chicken breast, BBQ, swiss, lettuce, tomato, onion, pickle, Shake & House dressing

APOLLO 13 (Greek Chicken) 570/1150/1720/830

Grilled chicken breast, garlic butter, kalamata olive, feta, spring mix, tomato, onion, pickle, Shake & Greek dressing

THE KID (Turkey, Bacon & Shrooms) 300/600/900/290

Roasted turkey breast, bacon, shrooms, swiss, lettuce, tomato, onion, pickle, Shake & House dressing

KALI MUST (Spicy Club) 420/840/1260/620

Roasted turkey breast, bacon, chipotle mayo, jalapeno, avocado, pepper jack, lettuce, tomato, onion, pickle, Shake & House dressing

MIDWEST BEST (Club) 360/770/1070/390

Roasted turkey breast, smoked ham, bacon, dijonaise, provolone, lettuce, tomato, onion, pickle, Shake & House dressing

G-13 (Turkey & Roast Beef) 390/770/1160/450

Roasted turkey breast, roast beef, bacon, chipotle mayo, provolone, lettuce, tomato, onion, pickle, Shake & House dressing

VEGGIE

GRIFFO (Cream Cheese & Veggie) 330/670/1000/350

Cream cheese, guacamole, pepper jack, spring mix, tomato, onion, pickle, cucumber, shrooms, black olive, green bell pepper, Shake & House dressing

A-TOWN (Mushroom Marinara) 490/990/1480/570

Portobello, garlic butter, ranch, marinara, green bell pepper, onion, black olive, provolone & Shake

MAGIC MUSHROOM (Teriyaki Shrooms) 240/480/730/170

Portobello, teriyaki, green bell pepper, pineapple, pepper jack, spring mix, tomato, onion, pickle, cucumber, black olive, Shake & House dressing

POWER PLANT (Guacamole & Hummus) 340/690/1030/370

Guacamole, hummus, feta, spring mix, tomato, onion, pickle, cucumber, shrooms, black olive, green bell pepper, Shake & House dressing

CHESSEL (TOASTED Cheese) 450/910/1360

Cheddar, swiss, provolone, garlic butter, cream cheese & Shake

STICKY ICKY (Peanut Butter & Jelly) 410/820/1220

MEAT

LA CANNA (Italian) 430/870/1300/550

Smoked ham, genoa salami, prosciutto, black olive, provolone, lettuce, tomato, onion, pickle, Shake & House dressing

E-O (ALL THE PIG, BABY) 460/910/1370/500

Smoked ham, genoa salami, prosciutto, pepperoni, bacon, giardiniera pepper, cheddar, lettuce, tomato, onion, pickle, Shake & House dressing

PARALOLO (Ham, Swiss & Pineapple) 420/830/1250/510

Smoked ham, honey mustard, pineapple, swiss, lettuce, tomato, onion, pickle, Shake & House dressing

CHRONIC (BBQ Roast Beef) 330/660/960/340

Roast beef, BBQ, green bell pepper, shrooms, cheddar, lettuce, tomato, onion, pickle, Shake & House dressing

MCB (Roast Beef & Horseshoe) 340/680/1020/360

Roast beef, horseshoe, green bell pepper, shrooms, swiss, lettuce, tomato, onion, pickle, Shake & House dressing

AK-47 (French Dip) 330/670/1000/350

Roast beef, portobello, onion, shrooms, double provolone & Shake. Served with a side of Au Jus

SENSI RUSH (BLT) 610/1230/1840/310

Bacon, honey sriracha, mayo, avocado, provolone, lettuce, tomato, Shake & House dressing

PACIFIC BLUE (Tuna Melt) 310/620/930/300

Our very own handcrafted tuna salad topped with cheddar, lettuce tomato, onion, pickle, Shake & House dressing

BOMB (Meatball) 450/890/1340/590

Meatballs, marinara, green bell pepper, shrooms, double provolone & Shake

DANK (Pizza Sub) 570/1140/1710/820

Genoa salami, pepperoni, marinara, double provolone & Shake



SECRET STASH

LOCAL FAVORITES WHILE SUPPLIES LAST!

CHECK YOUR LOCAL STORE FOR IT'S
SECRET STASH SANDWICHES

MUNCHIES



- KRISPY RAB** 430-500
- CHIPS** 140-260
- GOO BALL** 510
- Krispies, peanut butter, cocoa, honey, butter marshmallows
- COOKIES** 460
- FRENCH ONION SOUP** 310
- BOWL O' BALLS** 460-470
- Meatballs with sauce, veggies and cheese. Your choice of BBQ, marinara, teriyaki, or Greek
- LOADED NOT CHOS** 610-1220
- Melched cheddar cheese, jalapeno, onion, black olive & hot sauce on a bed of nacho cheese Doritos w/ ranch drizzled on top
- PRETZEL NUGGETS** 870
- Soft pretzel bites tossed in garlic butter, salt, & Shake. Served with honey mustard
- GARLIC CHEESE BREAD** 810
- Signature garlic herb, garlic butter, cheddar, provolone & Shake. Served with marinara & ranch

COTTONMOUTH CURES

Kool-Aid, Iced Tea or Soda 10-270 • Red Bull 10-110



WE'VE GOT REWARDS.
IT'S GOT GAME.



JOIN NOW!



DOWNLOAD TODAY!

January 1998

Tempe, AZ



Cheba Hut "Toasted" Subs has been the neighborhood hangout for curing cottonmouth and The Munchies since its start in 1998. Founder Scott Jennings decided to showcase the harmony between great tasting food and...well, a very specific counter-culture.

We have the best BREAD in the business and nothing is fried at the Cheba Hut! Our motto is, "where the only thing fried is an occasional customer." The menu features over 25 signature sandwiches, as well as a variety of rice krispy bars, salads and munchies. Most locations feature full bars with local craft brew.

Our Huts are spread across the country. What really sets Cheba Hut apart, though, can only be experienced in our shops. We combine home grown food with real people in a relaxed environment.

CHEBA HUT

"TOASTED" SUBS

Est. 1998



SHOP-NAME

Street Address, CITY, ST 00000

CALL (000) 000-0000

www.ChebaHut.com

COCKTAILS

Hash-Can (320 cal) Sweet and Energizing – Rum, Tequila, Gin, Vodka, Blue Curacao, House-Made Sour Mix, and Red Bull of your choice (Reg, Sugar-free, Watermelon, Tropical, Coconut-Berry) **10**

Buzzed Bong Water (240 cal) Sweet and Tangy – Sailor Jerry Spiced Rum, Blue Curacao, Fresh Lemon Juice, Blue Raspberry Kool-Aid, topped with lemon-lime soda **8**

Dirty Hippy (210 cal) Refreshing & Light – Deep Eddy Vodka, Muddled Cucumbers, Lemonade, topped with lemon-lime soda **8** (TOKER TIP: Try it with Gin)

Zkittles (340 cal) Sweet and fruity – Ole Smoky Hunch Punch Lightnin', Peach Schnapps, Fresh Lemon Juice, Simple Syrup, topped with lemon-lime soda **8**

Ms. Parker (260 cal) Sweet, tart, & fizzy – Ole Smoky Blackberry Moonshine, Fresh Lemon Juice, Simple Syrup, topped with soda water **8** (TOKER TIP: Swap the soda water with Ginger Beer)

Citrus Tsunami Marg (360 cal) Refreshing and Tart – Corazon Blanco Tequila, Triple Sec, Simple Syrup, Fresh Lime Juice, House-Made Sour Mix **8**

Gin N' Juice (250 cal) Citrusy and sweet – Seagram's Gin, Orange Juice, Pineapple Juice. **8**

Mule Fuel (300 cal) Bold and Refreshing – Choice of Deep Eddy Vodka, Old Forester Bourbon, Corazon Blanco Tequila, or Seagrams Gin, Owen's Ginger Beer, Fresh Lime Juice, Simple Syrup **8**

Blazin' Mary (210 cal) Rich and Savory – Deep Eddy Vodka and House-Made Bloody Mix. Make it spicy with muddled jalapeños **8**

SHOTS

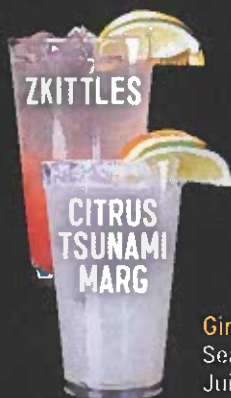
Dragon's Blood (110 cal) Sweet and then spicy. Fireball, Cranberry Juice, Lemonade **7**

Green Tea (150 cal) Sweet Peach with a kick: Jameson, Peach Schnapps, House-Made Sour Mix **7**

Lemon-Drop (170 cal) Sweet and Sour: Deep Eddy Lemon Vodka, Fresh Lemon Juice, Simple Syrup with a sugar rim **7**

Beer & Shot Combo (Beer 95-230 cal; Shots 128-149 cal) Add a Well shot to any draft beer for an extra **2**

*DRINK RESPONSIBLY, 21+



HAPPY HOUR

MONDAY-FRIDAY 3PM-6PM

\$1 off all alcohol on Bar Menu.
All draft beer, cocktails, and shots.

DAILY SPECIALS

Tuesday: Industry Night
25% off All Alcohol

Friday: Hash Can: \$3 Off

Sunday: \$3 Off Gin N' Juice
& Blazin' Marys



MOCKTAILS

Electric Unicorn (160 cal) Fruity and islandy – Coconut-Berry Red Bull, Muddled Lemon & Lime, Pineapple Juice **5.50**

Electric Fairy (180 cal) Fruity and citrusy – Tropical Red Bull, muddled Orange, Pineapple Juice, House-Made Sour Mix. **5.50**

Honey Bud Spritz (230 cal) Sweet with a tart finish – Cranberry Juice, Honey, Muddled Orange, Fresh Lemon Juice, Simple Syrup, topped with Soda Water **5**

Safe Sex on the Beach (170 cal) Sweet and Familiar – Cranberry Juice, Pineapple juice, Orange juice, Grenadine topped with soda water **5**

**Ask your bartender for NA beer options available*

**ATHLETIC
BREWING CO.**

MUNCHIES



Loaded Not'chos (610-1220 cal) Melted cheddar cheese, jalapeños, onions, black olives & hot sauce on a bed of Nacho Cheese Doritos w/ ranch (TOKER TIP: Try it with Cool Ranch Doritos)

Garlic Cheese Bread (810 cal) Signature garlic herb bread, garlic butter, cheddar, provolone & Shake. Served with marinara & ranch

Pretzel Nugs (870 cal) Soft pretzel bites tossed in garlic butter, salt & Shake. Served with honey mustard



SCAN FOR THE FULL MENU
& ORDER WITH YOUR BARTENDER

CHEBAHUT.COM/MENU